

FORUM IAS



UPSC PRELIMS

Level - 2

Polity

TEST – 02

WITH SOLUTION

2022

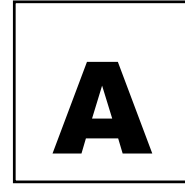
SFG 2022 | LEVEL 2 | Test 2 |

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T.B.C.: FIAS-SFG22-L2T2

Test Booklet Series

Serial No.

TEST BOOKLET
GENERAL STUDIES

Time Allowed: ONE HOUR

Maximum Marks: 100

I N S T R U C T I O N S

1. IMMEDIATELY AFTER THE COMMENCEMENT OF THE EXAMINATION, YOU SHOULD CHECK THAT THIS TEST BOOKLET DOES NOT HAVE ANY UNPRINTED OR TORN OR MISSING PAGES OR ITEMS ETC. IF SO, GET IT REPLACED BY A COMPLETE TEST BOOK.
2. Please note that it is the candidate's responsibility to encode and fill in the Roll Number and Test Booklet Series A, B, C or D carefully without any omission or discrepancy at the appropriate places in the OMR Answer Sheet. Any omission/discrepancy will render the Answer Sheet liable for rejection.
3. You have to enter your Name, Email Id and Mobile No. on the test booklet in the Box provided alongside. *DO NOT* write anything else on the Test Booklet.
4. This Test Booklet contains **50** items (questions). Each item is printed in **English** and **Hindi**. Each item comprises four responses (answers). You will select the response which you want to mark on the Answer Sheet. In case you feel that there is more than one correct response, mark the response which you consider the best. In any case, choose *ONLY ONE* response for each item.
5. You have to mark all your responses *ONLY* on the separate Answer Sheet provided. See directions in the Answer Sheet.
6. **All** items carry equal marks.
7. Before you proceed to mark in the Answer Sheet the response to various items in the Test Booklet, you have to fill in some particulars in the Answer Sheet as per instructions sent to you with your Admission Certificate.
8. After you have completed filling in all your responses on the Answer Sheet and the examination has concluded, you should hand over to the Invigilator *only* the Answer Sheet. You are permitted to take away with you the Test Booklet.
9. Sheets for rough work are appended in the Test Booklet at the end.
10. **Penalty for wrong answers:**

Name:

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THERE WILL BE PENALTY FOR WRONG ANSWERS MARKED BY A CANDIDATE IN THE OBJECTIVE TYPE QUESTION PAPERS.

- (i) There are four alternatives for the answer to every question. For each question for which a wrong answer has been given by the candidate, **one-third** of the marks assigned to that question will be deducted as penalty.
- (ii) If a candidate gives more than one answer, it will be treated as **wrong answer** even if one of the given answers happens to be correct and there will be same penalty as above to that question.
- (iii) If a question is left blank i.e., no answer is given by the candidate, there will be **no penalty** for that question.

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Q.1) With reference to the meaning of State as defined under Article 12 of the Constitution, consider the following statements:

1. A private body working as an instrument of the State falls within the meaning of the 'State'.
2. Urban Improvement Trusts are included in the definition of state.
3. All Private Universities are included as elements of state under Article 12.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Q.2) Consider the following statements with respect to the difference between 'equality before law' and 'equal protection of laws':

1. While equality before law implies equal treatment under equal circumstances, equal protection of law ensures absence of any special privileges for any person.
2. Equality before the law implies the absence of any special privilege in favour of any individual while Equal protection of the law does not forbid different treatment for unequals.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Q.3) With reference to the concept of Rule of Law, consider the following statements:

1. In Keshavananda Bharti case the Supreme Court has included the Rule of Law as the basic feature of the Constitution.
2. Immunities and privileges of President against criminal proceedings are exceptions to Rule of Law under the Indian Constitution.
3. In India, according to the Rule of Law, Judicial Supremacy prevails over the Legislature and the Executive.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 only
- c) 1 and 3 only
- d) 3 only

Q.4) With reference to the exceptions to equality under Article 14 of the Constitution, consider the following statements:

1. No civil proceedings can be instituted against the President during the term of office.
2. Laws made by the state for implementing the Directive Principles contained in Article 39

cannot be challenged on the ground that they are violative of Article 21.

3. The foreign ambassadors and diplomats enjoy immunity from both criminal and civil proceedings.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 and 3 only
- c) 3 only
- d) 1 and 2 only

Q.5) Consider the following statements regarding 'Journal of Threatened Taxa (JoTT)':

1. It is an international journal on conservation and taxonomy.
2. It is published by International Union for Conservation of Nature.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Q.6) With reference to the restrictions imposed on Article 19 of the Constitution, consider the following statements:

1. Under Section 144 of the Criminal Procedure Code, a magistrate can restrain an assembly if there is resistance in the execution of any law.
2. Under Section 141 of the Indian Penal Code, an assembly of five or more people becomes unlawful if they forcibly occupy the property of some person.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Q.7) Which of the following rights are included in both Fundamental Rights of Indian constitution and Universal Declaration of Human Rights?

1. Right against arbitrary arrests
2. Prohibition of forced labour
3. Right to freely practice religion

Select the correct answer using the code given below:

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

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Q.1) संविधान के अनुच्छेद 12 के तहत परिभाषित राज्य के अर्थ के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. राज्य के एक उपकरण के रूप में काम करने वाला एक निजी निकाय 'राज्य' के अर्थ में आता है।
2. शहरी सुधार न्यास या अर्बन इम्प्रूवमेंट ट्रस्ट राज्य की परिभाषा में शामिल हैं।
3. सभी निजी विश्वविद्यालयों को अनुच्छेद 12 के तहत राज्य के तत्वों के रूप में शामिल किया गया है।

ऊपर दिए गए कथनों में से कौन-सा सही है?

- a) केवल 1 और 2
- b) केवल 2 और 3
- c) केवल 1 और 3
- d) 1, 2 और 3

Q.2) 'विधि के समक्ष समता' और 'विधियों का समान संरक्षण' के बीच अंतर के संबंध में निम्नलिखित कथनों पर विचार करें:

1. विधि के समक्ष समता का तात्पर्य समान परिस्थितियों में समान व्यवहार से है जबकि विधियों का समान संरक्षण किसी भी व्यक्ति के लिए किसी विशेष विशेषाधिकार का अभाव सुनिश्चित करता है।
2. विधि के समक्ष समता का तात्पर्य किसी व्यक्ति के पक्ष में किसी विशेष विशेषाधिकार की अनुपस्थिति से है जबकि विधियों का समान संरक्षण असमानों के लिए अलग व्यवहार की मनाही नहीं करता है।

ऊपर दिए गए कथनों में से कौन-सा सही है?

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

Q.3) विधि के शासन की अवधारणा के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. केशवानंद भारती मामले में सर्वोच्च न्यायालय ने विधि के शासन को संविधान की मूल विशेषता के रूप में शामिल किया है।
2. आपराधिक कार्यवाही के खिलाफ राष्ट्रपति की उन्मुक्तियां और विशेषाधिकार भारतीय संविधान के तहत विधि के शासन के अपवाद हैं।
3. भारत में, विधि के शासन के अनुसार, न्यायिक सर्वोच्चता विधायिका और कार्यपालिका पर भारी है।

ऊपर दिए गए कथनों में से कौन-सा सही है?

- a) केवल 1 और 2
- b) केवल 2
- c) केवल 1 और 3
- d) केवल 3

Q.4) संविधान के अनुच्छेद 14 के तहत समता के अपवादों के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. पद की अवधि के दौरान राष्ट्रपति के खिलाफ कोई दीवानी मुकदमा नहीं चलाया जा सकता है।
2. अनुच्छेद 39 में निहित निदेशक सिद्धांतों को लागू करने के लिए राज्य द्वारा बनाए गए कानूनों को इस आधार पर चुनौती

नहीं दी जा सकती है कि वे अनुच्छेद 21 का उल्लंघन करते हैं।

3. विदेशी राजदूतों और राजनयिकों को आपराधिक और दीवानी दोनों कार्यवाही से छूट प्राप्त है।

ऊपर दिए गए कथनों में से कौन-सा सही है?

- a) केवल 1
- b) केवल 2 और 3
- c) केवल 3
- d) केवल 1 और 2

Q.5) ' जर्नल ऑफ थ्रीटेनड टैक्सा या संकटग्रस्त वर्गिकी की पत्रिका (Journal of Threatened Taxa)' के संबंध में निम्नलिखित कथनों पर विचार करें:

1. यह संरक्षण और वर्गीकरण पर एक अंतरराष्ट्रीय पत्रिका है।
2. यह अंतरराष्ट्रीय प्रकृति संरक्षण संघ द्वारा प्रकाशित किया जाता है।

ऊपर दिए गए कथनों में से कौन-सा सही है?

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

Q.6) संविधान के अनुच्छेद 19 पर लगाए गए प्रतिबंधों के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. दंड प्रक्रिया संहिता की धारा 144 के तहत मजिस्ट्रेट किसी सभा को रोक सकता है यदि किसी कानून के क्रियान्वयन में विरोध हो रहा है।
2. भारतीय दंड संहिता की धारा 141 के तहत पांच या अधिक लोगों का जमावड़ा अवैध हो जाता है यदि वे किसी व्यक्ति की संपत्ति पर जबरन कब्जा करते हैं।

ऊपर दिए गए कथनों में से कौन-सा सही है?

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

Q.7) निम्नलिखित में से कौन से अधिकार भारतीय संविधान के मौलिक अधिकारों और मानव अधिकारों की सार्वभौम घोषणा दोनों में शामिल हैं?

1. मनमानी गिरफ्तारी के खिलाफ अधिकार
2. जबरन मजदूरी का निषेध
3. स्वतंत्र रूप से धर्म का पालन करने का अधिकार

- नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:
- a) केवल 1 और 2
 - b) केवल 2 और 3
 - c) केवल 1 और 3
 - d) 1, 2 और 3

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Q.8) With reference to the provisions of Article 19 of the Constitution, consider the following statements:

1. The rights are protected against only state actions and not private individuals.
2. The rights are only available to shareholders of companies and not legal persons like corporations.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Q.9) On which of the following grounds is discrimination allowed under Article 15 of the Indian Constitution?

1. Special provisions for advancement of Schedule castes and Scheduled Tribes.
2. Provisions for socially and educationally backward classes regarding admission in private educational institutions.
3. Provisions of free education to children.
4. Reservation of up to 15% for economically weaker sections in matters regarding appointments.

Select the correct answer using the code given below:

- a) 1 and 3 only
- b) 1, 2 and 3 only
- c) 2 and 4 only
- d) 1, 2, 3 and 4

Q.10) At present, Foreign Direct Investment (FDI) up to 100% under automatic route is allowed in which of the following sectors in India?

1. Hospital Sector
2. Insurance Sector
3. Brownfield projects in Pharmaceutical Sector
4. Telecom Services and telecom infrastructure providers

Select the correct answer using the codes given below:

- a) 1 and 2 only
- b) 1 and 4 only
- c) 2 and 3 only
- d) 3 and 4 only

Q.11) Consider the following statements with respect to the provisions of Article 16 of the Constitution:

1. Employment to any office under the State shall not be based on grounds only of place of birth.
2. State legislatures may make a law prescribing a requirement of residence for jobs in a particular state.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Q.12) With reference to Article 17 of the Constitution, consider the following statements:

1. Untouchability is defined under the Article as social disabilities arising out of birth of persons in certain castes.
2. It is available against the actions of private individuals.
3. The Protection of Civil Rights Act, 1955, was enacted for effective implementation of Article 17.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Q.13) "A farmer's union wanted to organise hunger strikes and take out processions against the decision of the district administration. But their demand is not met by the district administration." Which of the following fundamental rights is violated in the above situation?

- a) Article 15
- b) Article 19
- c) Article 32
- d) Article 21

Q.14) Which of the following statements **is/are incorrect** regarding minority educational institutions (MEIs)?

1. MEIs recognised but unaided by the State are not subjected to regulatory power of state.
2. All MEIs should provide 25% reserved seats to children belonging to economically backward section of society.
3. National Eligibility-cum-Entrance Test (NEET) does not apply to unaided minority educational institutions.

Select the correct answer using the code given below:

- a) 1 and 2 only
- b) 2 only
- c) 3 only
- d) 1, 2 and 3

Q.15) Consider the following statements regarding AIM-PRIME:

1. The program is launched by Ministry of Skill Development in association with Bill & Melinda Gates Foundation.
2. It is open to technology developers with strong science-based deep tech business ideas.
3. It will provide training and guidance for a period of five years.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 only
- c) 2 and 3 only
- d) 3 only

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Q.8) संविधान के अनुच्छेद 19 के प्रावधानों के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. इन अधिकारों की रक्षा केवल राज्य के कार्यों के विरुद्ध होती है, निजी व्यक्तियों के विरुद्ध नहीं।
2. ये अधिकार केवल कंपनियों के शेयरधारकों के लिए उपलब्ध हैं, निगमों जैसे कानूनी इकाइयों के लिए नहीं।

ऊपर दिए गए कथनों में से कौन-सा सही है?

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

Q.9) भारतीय संविधान के अनुच्छेद 15 के तहत निम्नलिखित में से किस आधार पर भेदभाव की अनुमति है?

1. अनुसूचित जातियों और अनुसूचित जनजातियों की उत्पत्ति के लिए विशेष प्रावधान।
2. निजी शिक्षण संस्थानों में प्रवेश के संबंध में सामाजिक एवं शैक्षणिक रूप से पिछड़े वर्गों के लिए प्रावधान।
3. बच्चों को निःशुल्क शिक्षा का प्रावधान।
4. आर्थिक रूप से कमजोर वर्गों के लिए नियुक्तियों से संबंधित मामलों में 15% तक आरक्षण।

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1 और 3
- b) केवल 1, 2 और 3
- c) केवल 2 और 4
- d) 1, 2, 3 और 4

Q.10) वर्तमान में, भारत में निम्नलिखित में से किस क्षेत्र में स्वचालित मार्ग के तहत 100% तक प्रत्यक्ष विदेशी निवेश (FDI) की अनुमति है?

1. अस्पताल क्षेत्र
2. बीमा क्षेत्र
3. फार्मास्युटिकल या औषध क्षेत्र में ब्राउनफील्ड परियोजनाएं
4. दूरसंचार सेवाएं और दूरसंचार अवसंरचना प्रदाता

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1 और 2
- b) केवल 1 और 4
- c) केवल 2 और 3
- d) केवल 3 और 4

Q.11) संविधान के अनुच्छेद 16 के प्रावधानों के संबंध में निम्नलिखित कथनों पर विचार करें:

1. राज्य के अधीन किसी कार्यालय में नियोजन केवल जन्म स्थान के आधार पर नहीं होगा।
2. राज्य विधायिका किसी विशेष राज्य में नौकरियों के लिए निवास की आवश्यकता को निर्धारित करते हुए एक कानून बना सकती है।

ऊपर दिए गए कथनों में से कौन-सा सही है?

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

Q.12) संविधान के अनुच्छेद 17 के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. अनुच्छेद 17 में अस्पृश्यता को कुछ जातियों में व्यक्तियों के जन्म से उत्पन्न होने वाली सामाजिक अक्षमता के रूप में परिभाषित किया गया है।

2. यह निजी व्यक्तियों के कार्यों के विरुद्ध उपलब्ध है।
3. नागरिक अधिकार संरक्षण अधिनियम, 1955, अनुच्छेद 17 के प्रभावी कार्यान्वयन के लिए अधिनियमित किया गया था।

ऊपर दिए गए कथनों में से कौन-सा सही है?

- a) केवल 1 और 2
- b) केवल 2 और 3
- c) केवल 1 और 3
- d) 1, 2 और 3

Q.13) "एक किसान संघ जिला प्रशासन के फैसले के खिलाफ भूख हड़ताल करना और जुलूस निकालना चाहता था। लेकिन उनकी मांग जिला प्रशासन द्वारा पूरी नहीं की जा रही है। उपरोक्त स्थिति में निम्नलिखित में से किस मौलिक अधिकार का उल्लंघन होता है?"

- a) अनुच्छेद 15
- b) अनुच्छेद 19
- c) अनुच्छेद 32
- d) अनुच्छेद 21

Q.14) अल्पसंख्यक शैक्षणिक संस्थानों (MEI) के संबंध में निम्नलिखित में से कौन सा कथन गलत है?

1. राज्य द्वारा मान्यता प्राप्त लेकिन बिना सहायता प्राप्त अल्पसंख्यक शैक्षणिक संस्थान राज्य की नियामक शक्ति के अधीन नहीं हैं।
2. सभी अल्पसंख्यक शैक्षणिक संस्थान को समाज के आर्थिक रूप से पिछड़े वर्ग के बच्चों को 25% आरक्षित सीटें प्रदान करनी होती है।
3. राष्ट्रीय पात्रता-सह-प्रवेश परीक्षा (National Eligibility-cum-Entrance Test -NEET) गैर-सहायता प्राप्त अल्पसंख्यक शैक्षणिक संस्थानों पर लागू नहीं होती है।

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1 और 2
- b) केवल 2
- c) केवल 3
- d) 1, 2 और 3

Q.15) एआईएम-प्राइम (AIM-PRIME) के संबंध में निम्नलिखित कथनों पर विचार करें:

1. यह कार्यक्रम कौशल विकास मंत्रालय द्वारा बिल एंड मेलिंडा गेट्स फाउंडेशन के सहयोग से शुरू किया गया है।
2. यह मजबूत विज्ञान-आधारित गहन तकनीकी व्यावसायिक विचारों वाले प्रौद्योगिकी डेवलपर्स के लिए खुला है।
3. यह पांच साल की अवधि के लिए प्रशिक्षण और मार्गदर्शन प्रदान करेगा।

ऊपर दिए गए कथनों में से कौन-सा सही है?

- a) केवल 1 और 2
- b) केवल 2
- c) केवल 2 और 3
- d) केवल 3

SFG 2022 | LEVEL 2 | Test 2 |

Q.16) Consider the following statements regarding Padma awards in India.

1. Bharat Ratna and Padma Vibhushan were instituted in 1954.
2. A formal recommendation should be submitted to the President by the Cabinet for Bharat Ratna.
3. These awards were discontinued by the Janata Party government in 1977.
4. The Padma Awards Committee is headed by the Prime Minister.

Which of the statements given above is/are correct?

- a) 1 and 3 only
- b) 2 and 4 only
- c) 2, 3 and 4 only
- d) 1, 2, 3 and 4

Q.17) In the context of Article 18, which of the following statements is/are correct?

1. The hereditary titles of nobility conferred by colonial State are prohibited by Article 18.
2. The Supreme Court upheld that Padma Awards can be used as suffixes or prefixes to the names of awardees.

Select the correct answer using the code given below:

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Q.18) Consider the following statements regarding Diplomatic immunity?

1. It is an immunity granted to diplomats from all national, regional or municipal taxes in respect of the premises of their mission.
2. Diplomatic immunity is not available to the families of diplomats under the Vienna Convention of Diplomatic Relations, 1961.

Which of the statements given above is/are incorrect?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Q.19) In which of the following cases, the writ of habeas corpus is not issued?

1. Detention is outside the jurisdiction of the court.
2. When the martial law is imposed in a state.
3. When the proceeding is for contempt of a legislature or a court.
4. Where imprisonment is in accordance with a decision rendered by a court of law

Select the correct answer using the code given below:

- a) 1, 2 and 3 only
- b) 2 and 4 only
- c) 1 and 3 only
- d) 1, 3 and 4 only

Q.20) Which one of the following space programs aims to analyse the interior of the Mars Planet, including its crust, mantle, and core?

- a) Chang'e-5 Mission
- b) InSight Mission
- c) Nozomi Mission
- d) Cassini-Huygens Mission

Q.21) Which of the following fundamental rights are available to a person who is arrested or detained under an ordinary law under Article 22?

1. Right to know the grounds of arrest
2. Right to be produced before the Magistrate
3. Right to be released on bail
4. Right to consult a Lawyer
5. Right to free legal aid
6. Right to keep quiet

Select the correct answer using the code given below:

- a) 1, 3, 4, 5 and 6 only
- b) 1, 2 and 4 only
- c) 1, 2, 3, 4 and 5 only
- d) 1, 2, 3, 4, 5 and 6

Q.22) With regard to difference between the Directive Principles and the instrument of instructions issued by the British Government in India, which of the following statements is correct?

- a) The instrument of instructions was enumerated in the Government of India Act 1919, whereas the Directive Principles are enumerated in part IV of Indian Constitution.
- b) The instrument of instructions are instructions to executive only whereas the Directive Principles are instructions to both legislature and executive.
- c) The instrument of instructions is not enforceable whereas the Directive Principles are enforceable.
- d) The instrument of instructions are the guidelines issued by Governor general, whereas the Directive Principles are constitutional instructions.

Q.23) With regard to Directive Principles of state policies (DPSPs), which of the following statements is/are correct?

1. Social democracy is ensured by DPSPs whereas economic democracy is ensured by Fundamental duties.
2. No matter related to implementation of DPSPs can be appealed for enforcement in court as DPSPs are not justiciable in court.

Select the correct answer using the code given below:

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

SFG 2022 | LEVEL 2 | Test 2 |

Q.16) भारत में पद्म पुरस्कारों के संबंध में निम्नलिखित कथनों पर विचार करें।

1. भारत रत्न और पद्म विभूषण 1954 में स्थापित किए गए थे।
 2. भारत रत्न हेतु कैबिनेट द्वारा एक औपचारिक सिफारिश राष्ट्रपति को प्रस्तुत की जाती है।
 3. 1977 में जनता पार्टी सरकार ने इन पुरस्कारों को बंद कर दिया था।
 4. पद्म पुरस्कार समिति की अध्यक्षता प्रधानमंत्री करते हैं।
- ऊपर दिए गए कथनों में से कौन-सा सही है?
- a) केवल 1 और 3
 - b) केवल 2 और 4
 - c) केवल 2, 3 और 4
 - d) 1, 2, 3 और 4

Q.17) अनुच्छेद 18 के संदर्भ में, निम्नलिखित में से कौन सा कथन सही है?

1. औपनिवेशिक राज्य द्वारा प्रदत्त कुलीनता की वंशानुगत उपाधियाँ अनुच्छेद 18 द्वारा निषिद्ध हैं।
2. उच्चतम न्यायालय ने इस बात को बरकरार रखा कि विजेताओं द्वारा पद्म पुरस्कार उपाधि को अपने नाम के पहले या बाद में लगाया जा सकता है।

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

Q.18) राजनयिक उन्मुक्ति (Diplomatic immunity) के संबंध में निम्नलिखित कथनों पर विचार करें?

1. यह राजनयिकों को उनके मिशन के परिसर से संबंधित सभी राष्ट्रीय, क्षेत्रीय या नगरपालिका करों से छूट प्रदान करने की बात कहता है।
2. राजनयिक संबंध (वियना कन्वेंशन) अधिनियम के तहत राजनयिकों के परिवारों के लिए राजनयिक उन्मुक्ति उपलब्ध नहीं है।

ऊपर दिए गए कथनों में से कौन-सा गलत है?

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

Q.19) निम्नलिखित में से किस मामले में बंदी प्रत्यक्षीकरण रिट जारी नहीं की जाती है?

1. यदि हिरासत अदालत के अधिकार क्षेत्र से बाहर है।
2. जब किसी राज्य में सैनिक कानून या मार्शल लॉ लगाया गया हो।
3. जब कार्यवाही किसी विधायिका या न्यायालय की अवमानना के लिए हो।
4. जहां कारावास विधि की अदालत द्वारा दिए गए निर्णय के अनुसार है।

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1, 2 और 3
- b) केवल 2 और 4
- c) केवल 1 और 3
- d) केवल 1, 3 और 4

Q.20) निम्नलिखित में से किस अंतरिक्ष कार्यक्रम का उद्देश्य मंगल ग्रह के आंतरिक भाग का विश्लेषण करना है, जिसमें उसकी पर्पटी, मेटल और कोर शामिल हैं?

- a) चांग'ए -5 मिशन (Chang'e-5 Mission)
- b) इनसाइट मिशन (InSight Mission)
- c) नोजोमी मिशन (Nozomi Mission)
- d) कैसिनी-ह्यूजेस मिशन (Cassini-Huygens Mission)

Q.21) अनुच्छेद 22 के अंतर्गत एक सामान्य कानून के तहत गिरफ्तार या हिरासत में लिए गए व्यक्ति को निम्नलिखित में से कौन से मौलिक अधिकार उपलब्ध हैं?

1. गिरफ्तारी के आधार जानने का अधिकार
2. मजिस्ट्रेट के समक्ष पेश होने का अधिकार
3. जमानत पर रिहा होने का अधिकार।
4. वकील से परामर्श करने का अधिकार
5. मुफ्त कानूनी सहायता का अधिकार
6. चुप रहने का अधिकार

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1, 3, 4, 5 और 6
- b) केवल 1, 2 और 4
- c) केवल 1, 2, 3, 4 और 5
- d) 1, 2, 3, 4, 5 और 6

Q.22) भारत में नीति निर्देशक सिद्धांतों और ब्रिटिश सरकार द्वारा जारी किए गए अनुदेश पत्र (instrument of instructions) के बीच अंतर के संबंध में, निम्नलिखित में से कौन सा कथन सही है?

- a) भारत सरकार अधिनियम 1919 में अनुदेश पत्र को सम्मिलित किया गया था जबकि निर्देशक सिद्धांतों को भारतीय संविधान के भाग IV में वर्णित किया गया है।
- b) अनुदेश पत्र केवल कार्यपालिका के लिए निर्देश था जबकि निर्देशक सिद्धांत विधायिका और कार्यपालिका दोनों के लिए निर्देश हैं।
- c) अनुदेश पत्र प्रवर्तनीय नहीं था जबकि निर्देशक सिद्धांत प्रवर्तनीय हैं।
- d) अनुदेश पत्र गवर्नर जनरल द्वारा जारी दिशा-निर्देश थे, जबकि निर्देशक सिद्धांत संवैधानिक निर्देश हैं।

Q.23) राज्य के नीति निर्देशक सिद्धांतों (DPSPs) के संबंध में, निम्नलिखित में से कौन सा कथन सही है?

1. सामाजिक लोकतंत्र नीति निर्देशक तत्व द्वारा सुनिश्चित किया जाता है जबकि आर्थिक लोकतंत्र मौलिक कर्तव्यों द्वारा सुनिश्चित किया जाता है।
2. नीति निर्देशक तत्व के कार्यान्वयन से संबंधित किसी भी मामले को अदालत में लागू करने के लिए अपील नहीं की जा सकती क्योंकि नीति निर्देशक तत्व अदालत में न्यायोचित नहीं हैं।

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

SFG 2022 | LEVEL 2 | Test 2 |

Q.24) Which of the following directives to the state are outside Part IV of the Constitution?

1. The claims of the members of the Scheduled Castes and the Scheduled Tribes to services and posts to the Union or a State.
2. To provide instruction in the mother-tongue at the primary stage of education to children belonging to linguistic minority groups.
3. To encourage settlement of international disputes by arbitration.
4. To promote the spread of Hindi language as a language of communication between the union and states.

Select the correct answer using the code given below:

- a) 1, 2 and 3 only
- b) 3 and 4 only
- c) 1, 2 and 4 only
- d) 1, 2, 3 and 4

Q.25) Consider the following statements regarding National Super Computing Mission:

1. Param Brahma was the first supercomputer assembled indigenously and installed under this mission.
2. The implementing agency of the mission is National Informatics Centre (NIC), under the Ministry of Electronics and Information Technology.
3. The phase III of the mission will take the computing speed to around 150 Petaflops in India.

Which of the statements given above is/are **incorrect**?

- a) 1 and 2 only
- b) 2 only
- c) 2 and 3 only
- d) 1, 2 and 3

Q.26) With reference to the implications associated with Article 25, consider the following statements:

1. The Article covers only the right to religious practices and not rituals and ceremonies.
2. The right is available to both the citizens of India and non-citizens.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Q.27) Which of the following statements is/are correct about the concept of 'Police State'?

1. It puts forward that the state can perform various functions of social welfare.
2. It is concerned with the maintenance of law and order and defense of the country against external aggression.
3. Laissez faire is the fundamental economic system and policy followed by all Police states.

Select the correct answer using the code given below.

- a) 1 and 2 only
- b) 1 and 3 only
- c) 2 only
- d) 1, 2 and 3

Q.28) Consider the following statements:

1. The Constitution provides that it shall be the duty of the Union to promote the spread of the Hindi language.
2. Sitakant Mohapatra Committee was formed to set up the criteria for inclusion of more languages in the Eighth Schedule.
3. The proceedings of the High Court can take place in Hindi language with the authorization of the Governor.

Which of the statements above is/are correct?

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Q.29) With reference to Directive Principles of State Policy (DPSPs), consider the following statements:

1. Any law giving effect to any of the DPSPs cannot be questioned in the court.
2. The DPSPs help the court in examining and determining the constitutional validity of a law.

Which of the above-mentioned statements is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Q.30) Which one of the following organizations undertakes 'Election Visitor and Observation Program' in order to increase awareness regarding different election systems?

- a) Election Commission of India
- b) Association of World Election Bodies
- c) International Foundation for Electoral Systems
- d) European Commission for Democracy

Q.31) In the context of Directive Principles of State Policy, which of the following statement correctly describes the importance of Article 31C?

- a) It was introduced to overturn the Kesavananda Bharti Case verdict that made Fundamental Rights sacrosanct.
- b) It protects acts and regulations included in the ninth schedule from being challenged in the court of law.
- c) It diluted the Right to Equality (Article 14) and Freedom of Speech and Expression (Article 19) of the constitution in favor of some DPSPs.
- d) It directs the state that operation of economic system should not result in concentration of wealth.

SFG 2022 | LEVEL 2 | Test 2 |

Q.24) राज्य के लिए निम्नलिखित में से कौन से निर्देश संविधान के भाग IV के बाहर हैं?

1. संघ या राज्य की सेवाओं और पदों के लिए अनुसूचित जातियों और अनुसूचित जनजातियों के सदस्यों के दावे।
2. भाषाई अल्पसंख्यक समूहों के बच्चों को शिक्षा के प्राथमिक स्तर पर मातृभाषा में शिक्षा प्रदान करना।
3. मध्यस्थता द्वारा अंतरराष्ट्रीय विवादों के निपटारे को प्रोत्साहित करना।
4. संघ और राज्यों के बीच संचार की भाषा के रूप में हिंदी भाषा के प्रसार को बढ़ावा देना।

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1, 2 और 3
- b) केवल 3 और 4
- c) केवल 1, 2 और 4
- d) 1, 2, 3 और 4

Q.25) राष्ट्रीय सुपर कंप्यूटिंग मिशन के संबंध में निम्नलिखित कथनों पर विचार करें:

1. परम ब्रह्मा इस मिशन के तहत स्वदेशी रूप से संकलित और स्थापित पहला सुपर कंप्यूटर था।
2. मिशन की कार्यन्वयन एजेंसी इलेक्ट्रॉनिक्स और सूचना प्रौद्योगिकी मंत्रालय के तहत राष्ट्रीय सूचना विज्ञान केंद्र (NIC) है।
3. मिशन का तीसरा चरण भारत में कंप्यूटिंग गति को लगभग 150 पेटाफ्लॉप तक ले जाएगा।

ऊपर दिए गए कथनों में से कौन-सा गलत है?

- a) केवल 1 और 2
- b) केवल 2
- c) केवल 2 और 3
- d) 1, 2 और 3

Q.26) अनुच्छेद 25 से जुड़े निहितार्थों के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. अनुच्छेद केवल धार्मिक प्रथाओं के अधिकार को शामिल करता है न कि अनुष्ठानों और समारोहों को।
2. यह अधिकार भारत के नागरिकों और गैर-नागरिकों दोनों के लिए उपलब्ध है।

ऊपर दिए गए कथनों में से कौन-सा सही है?

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

Q.27) 'पुलिस राज्य' की अवधारणा के बारे में निम्नलिखित में से कौन सा कथन सही है?

1. यह बताता है कि राज्य सामाजिक कल्याण के विभिन्न कार्य कर सकता है।
2. यह कानून और व्यवस्था के रखरखाव और बाहरी आक्रमण के खिलाफ देश की रक्षा से संबंधित है।
3. अहस्तक्षेप(laissez-faire) सभी पुलिस राज्यों द्वारा अपनाई जाने वाली मूलभूत आर्थिक प्रणाली और नीति है।

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए।

- a) केवल 1 और 2
- b) केवल 1 और 3
- c) केवल 2
- d) 1, 2 और 3

Q.28) निम्नलिखित कथनों पर विचार करें:

1. संविधान में प्रावधान है कि हिंदी भाषा के प्रसार को बढ़ावा देना संघ का कर्तव्य होगा।
2. आठवीं अनुसूची में अधिक भाषाओं को शामिल करने के मानदंड स्थापित करने के लिए सीताकांत महापात्र समिति का गठन किया गया था।
3. राज्यपाल के प्राधिकार से उच्च न्यायालय की कार्यवाही हिन्दी भाषा में हो सकती है।

उपरोक्त में से कौन सा कथन सही है?

- a) केवल 1 और 2
- b) केवल 2 और 3
- c) केवल 1 और 3
- d) 1, 2 और 3

Q.29) राज्य के नीति निर्देशक सिद्धांतों के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. किसी भी नीति निर्देशक सिद्धांतों को प्रभावी करने वाले किसी भी कानून पर अदालत में सवाल नहीं उठाया जा सकता है।
2. नीति निर्देशक सिद्धांत किसी कानून की संवैधानिक वैधता की जांच और निर्धारण में अदालत की मदद करते हैं।

उपर्युक्त में से कौन सा कथन सही है?

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

Q.30) विभिन्न चुनाव प्रणालियों के बारे में जागरूकता बढ़ाने के लिए निम्नलिखित में से कौन सा संगठन 'इलेक्शन विजिटर एंड ऑब्जर्वेशन प्रोग्राम (Election Visitor and Observation Program)' चलाता है?

- a) भारत का चुनाव आयोग
- b) एसोसिएशन ऑफ वर्ल्ड इलेक्शन बॉडीज या विश्व चुनाव निकायों का संघ (Association of World Election Bodies)
- c) इंटरनेशनल फाउंडेशन फॉर इलेक्टोरल सिस्टम (International Foundation for Electoral Systems)
- d) यूरोपीय लोकतंत्र आयोग (European Commission for Democracy)

Q.31) राज्य के नीति निर्देशक सिद्धांतों के संदर्भ में, निम्नलिखित में से कौन सा कथन अनुच्छेद 31C के महत्व का सही वर्णन करता है?

- a) इसे केशवानंद भारती केस के फैसले को उलटने के लिए पेश किया गया था जिसने मौलिक अधिकारों को अनुलंघनीय बना दिया था।
- b) यह नौवीं अनुसूची में शामिल कृत्यों और विनियमों को अदालत में चुनौती दिए जाने से बचाता है।
- c) इसने कुछ नीति निर्देशक तत्व के पक्ष में संविधान के समानता के अधिकार (अनुच्छेद 14) और वाक् व अभिव्यक्ति की स्वतंत्रता (अनुच्छेद 19) को कमजोर कर दिया।
- d) यह राज्य को निर्देश देता है कि आर्थिक व्यवस्था के संचालन के परिणामस्वरूप धन का संकेंद्रण नहीं होना चाहिए।

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Q.32) With reference to Directive Principles of State Policy, consider the following statements:

1. Article 37 gives the executive the freedom to make DPSPs justiciable or non-justiciable.
2. Parliament enacted the first constitutional amendment act to give way to implementing some of the DPSPs.

Which of the above-mentioned statements is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) None of the above

Q.33) With reference to the usefulness of Directive Principles of State Policy, which of the following statements is/are correct?

1. It has greatly reduced constitutional conflicts between the Centre and State.
2. It helps in providing stability and continuity in domestic policies.

Choose the correct answer from the options given below:

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Q.34) Which of the following correctly describes the term Fabian Socialism?

- a) It believes in complete revolution or armed struggle to change the economic structure.
- b) They focus on ownership of all wealth with the government for development.
- c) They advocated for the necessity of the state and projected it as the ultimate arbiter of all disputes.
- d) They called for worker's control of industries through a system of national guilds.

Q.35) Which one of the following statements correctly describe the objective of recently launched 'Anamaya Initiative' by Government of India?

- a) It will set up a non-lapsable Fund for enhancing safety and security of women.
- b) It is a scholarship scheme to support young girls studying in Engineering colleges.
- c) It aims to improve the health and nutrition status of the tribal communities of India.
- d) It aims to provide opportunities to motivated scientists, engineers and field-level activists to take up time-bound research-oriented projects.

Q.36) With regard to fundamental rights under Article 23, which of the following statements is/are incorrect?

1. Whenever any service is taken by the State from any person, the state is bound to pay him.
2. This right is provided only against the actions of state and not private citizens.

3. The State is permitted to make any discrimination on grounds only of religion, race, caste or class in imposing compulsory service.

Select the correct answer using the code given below:

- a) 1 and 2 only
- b) 2 only
- c) 2 and 3 only
- d) 1, 2 and 3

Q.37) Which of the following are the programmes or institutions started by Indian government ensures the implementation of Directive Principles of State Policy?

1. 10% reservation to the Economically Weaker Sections
2. Setting up of National Commission for Backward Classes
3. Establishment of planning commission
4. Nationalization of life insurance

Select the correct answer using the codes given below:

- a) 1, 2, and 3 only
- b) 2, 3 and 4 only
- c) 1, 3 and 4 only
- d) 1, 2, 3 and 4

Q.38) Consider the following statements with reference to the Fundamental Rights and Directive Principles of State Policy:

1. Fundamental Rights are mostly negative in nature while the Directive Principles are positive in nature.
2. Fundamental Rights generally promote the welfare of the community while the Directive principles promote the welfare of the individuals only.
3. Fundamental Rights have the legal sanctions while the Directive principles of state policy have moral and political sanctions.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Q.39) Consider the following statements with reference to the Directive Principles of State Policy:

1. The Constitution contains the classification of Directive Principles into Socialistic, Gandhian and Liberal-Intellectual.
2. No part of Directive principles can be amended as they are part of basic structure.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

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Q.32) राज्य के नीति निर्देशक सिद्धांतों के संदर्भ में, निम्नलिखित कथनों पर विचार करें:

1. अनुच्छेद 37 कार्यपालिका को नीति निर्देशक तत्व को न्यायोचित या गैर-न्यायसंगत बनाने की स्वतंत्रता देता है।
2. संसद ने नीति निर्देशक तत्व को लागू करने का रास्ता देने के लिए पहला संवैधानिक संशोधन अधिनियम बनाया।

उपर्युक्त में से कौन सा कथन सही है?

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) उपरोक्त में से कोई नहीं

Q.33) राज्य के नीति निर्देशक तत्वों की उपयोगिता के संदर्भ में, निम्नलिखित में से कौन सा कथन सही है?

1. इसने केंद्र और राज्य के बीच संवैधानिक संघर्षों को बहुत कम कर दिया है।
2. यह घरेलू नीतियों में स्थिरता और निरंतरता प्रदान करने में मदद करता है।

नीचे दिए गए विकल्पों में से सही उत्तर चुनिए:

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

Q.34) निम्नलिखित में से कौन फैबियन समाजवाद शब्द का सही वर्णन करता है?

- a) यह आर्थिक संरचना को बदलने के लिए पूर्ण क्रांति या सशस्त्र संघर्ष में विश्वास करता है।
- b) यह विकास के लिए सरकार के पास सभी संपत्ति के स्वामित्व की बात कहता है।
- c) ये राज्य की आवश्यकता की वकालत करता है और इसे सभी विवादों के अंतिम मध्यस्थ के रूप में पेश करता है।
- d) ये राष्ट्रीय संघों की एक प्रणाली के माध्यम से श्रमिकों के उद्योगों पर नियंत्रण का आह्वान करता है।

Q.35) निम्नलिखित में से कौन सा कथन भारत सरकार द्वारा हाल ही में शुरू की गई 'अनामय पहल' के उद्देश्य का सही वर्णन करता है?

- a) यह महिलाओं की सुरक्षा बढ़ाने के लिए एक गैर-व्यपगत कोष की स्थापना करेगा।
- b) यह इंजीनियरिंग कॉलेजों में पढ़ने वाली युवा लड़कियों की सहायता के लिए एक छात्रवृत्ति योजना है।
- c) इसका उद्देश्य भारत के जनजातीय समुदायों के स्वास्थ्य और पोषण की स्थिति में सुधार करना है।
- d) इसका उद्देश्य प्रेरित वैज्ञानिकों, इंजीनियरों और क्षेत्र स्तर के कार्यकर्ताओं को समयबद्ध अनुसंधान-उन्मुख परियोजनाओं को शुरू करने के अवसर प्रदान करना है।

Q.36) अनुच्छेद 23 के तहत मौलिक अधिकारों के संबंध में, निम्नलिखित में से कौन सा कथन असत्य है?

1. जब भी राज्य द्वारा किसी व्यक्ति से कोई सेवा ली जाती है, तो राज्य उसे भुगतान करने के लिए बाध्य होता है।

2. यह अधिकार केवल राज्य के कार्यों के विरुद्ध प्रदान किया जाता है, न कि निजी नागरिकों के विरुद्ध।

3. राज्य को अनिवार्य सेवा लागू करने में केवल धर्म, नस्ल, जाति या वर्ग के आधार पर कोई भेदभाव करने की अनुमति है।

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1 और 2
- b) केवल 2
- c) केवल 2 और 3
- d) 1, 2 और 3

Q.37) निम्नलिखित में से कौन से कार्यक्रम या संस्थान भारत सरकार द्वारा शुरू किए गए हैं जो राज्य के नीति निर्देशक सिद्धांतों के कार्यान्वयन को सुनिश्चित करते हैं?

1. आर्थिक रूप से कमजोर वर्गों को 10% आरक्षण
2. राष्ट्रीय पिछड़ा वर्ग आयोग की स्थापना
3. योजना आयोग की स्थापना
4. जीवन बीमा का राष्ट्रीयकरण

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1, 2, और 3
- b) केवल 2, 3 और 4
- c) केवल 1, 3 और 4
- d) 1, 2, 3 और 4

Q.38) मौलिक अधिकारों और राज्य के नीति निर्देशक सिद्धांतों के संदर्भ में निम्नलिखित कथनों पर विचार करें:

1. मौलिक अधिकार ज्यादातर नकारात्मक प्रकृति के होते हैं जबकि निर्देशक सिद्धांत प्रकृति में सकारात्मक होते हैं।
2. मौलिक अधिकार आम तौर पर समुदाय के कल्याण को बढ़ावा देते हैं जबकि निर्देशक सिद्धांत केवल व्यक्तियों के कल्याण को बढ़ावा देते हैं।
3. मौलिक अधिकारों को कानूनी स्वीकृति प्राप्त हैं जबकि राज्य के नीति निर्देशक सिद्धांतों को नैतिक और राजनीतिक स्वीकृति प्राप्त हैं।

ऊपर दिए गए कथनों में से कौन-सा सही है?

- a) केवल 1 और 2
- b) केवल 2 और 3
- c) केवल 1 और 3
- d) 1, 2 और 3

Q.39) राज्य के नीति निर्देशक तत्वों के संदर्भ में निम्नलिखित कथनों पर विचार करें:

1. संविधान में निर्देशक सिद्धांतों का समाजवादी, गांधीवादी और उदार-बौद्धिक में वर्गीकरण शामिल है।
2. निर्देशक सिद्धांतों के किसी भी हिस्से में संशोधन नहीं किया जा सकता क्योंकि वे बुनियादी ढांचे का हिस्सा हैं।

ऊपर दिए गए कथनों में से कौन-सा/से सही है/हैं?

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

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Q.40) Consider the following statements:

1. India is one of the few countries that grow opium legally to extract alkaloids.
2. Poppy cultivation is allowed based on licences issued annually by the Central Bureau of Narcotics.
3. Narcotic Drugs and Psychotropic Substances (NDPS) Act, 1985 allows private players to produce opium in India.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Q.41) With reference to Indian polity, consider the following statements:

1. The original constitution contained only the fundamental rights and not the fundamental duties.
2. Framers of the constitution incorporated the duties of the State in the Constitution in the form of Directive principles of state policy.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Q.42) Consider the following statements with reference to the Mandamus:

1. Mandamus is a command issued by the court to a public official asking him to perform his official duties.
2. The writ of mandamus cannot be issued against a private individual or body.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Q.43) Consider the following statements with reference to the Swaran Singh Committee:

1. The committee recommended the inclusion of a new Schedule Thirteen on fundamental duties in the Constitution.
2. The committee wanted to make duties justiciable by giving powers to punish for non-compliance of duties by citizens.
3. Swaran Singh committee had suggested duty to pay taxes should also be a Fundamental Duty of the citizens.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Q.44) The Ancient and Historical Monument and Archaeological Sites and Remains Act (1951) has been enacted to protect the monuments, places and objects of artistic or historic interest which are declared to be of national importance. The act was implemented to justify which part of constitution?

- a) Part V
- b) Part III
- c) Part XII
- d) Part-IV

Q.45) With reference to 'Contemporary Global Situation', which one of the following statements most appropriately describe the term "One Health" often seen in news?

- a) It is a unique methodology to promote healthiness of the human body through natural medicines.
- b) It is a state of complete physical, mental, and social wellbeing and not merely an absence of disease.
- c) It is an approach that recognizes that the health of humans, animals, and ecosystems are interconnected.
- d) It is a system that integrates various fields of medicine including Allopathy and Ayurveda to provide effective health results.

Q.46) In the question given below, there are two statements marked as Assertion (A) and Reason (R). Mark your answer as per the codes provided below:

Assertion (A): The Constitution does not provide for any legal sanction against the violation of the Fundamental duties.

Reason (R): Parliament is free to enforce them by suitable legislation.

Which of the options given below is/are correct?

- a) A is true but R is false.
- b) Both A and R are true and R is the correct explanation of A.
- c) Both A and R are true but R is not the correct explanation of A.
- d) Both A and R are false.

Q.47) With reference to Martial law, which of the following statements is/are correct?

1. The concept of martial law has been borrowed in India from the English common law.
2. It refers to a situation where civil administration is run by the military authorities.
3. Martial law is clearly defined in the Constitution.
4. Declaration of martial law ipso facto result in the suspension of the writ of habeas corpus.

Select the correct answer using the codes given below:

- a) 1 and 2 only
- b) 3 and 4 only
- c) 1 and 3 only
- d) 2 and 4 only

SFG 2022 | LEVEL 2 | Test 2 | **Q.40)** निम्नलिखित कथनों पर विचार करें:

1. भारत उन कुछ देशों में से एक है जो क्षाराभ या एल्कलॉइड निकालने के लिए कानूनी रूप से अफीम उगाते हैं।
2. केंद्रीय नारकोटिक्स ब्यूरो द्वारा सालाना जारी लाइसेंस के आधार पर अफीम की खेती की अनुमति है।
3. नारकोटिक्स ड्रग्स साइकोट्रोपिक सब्सटेंस (NDPS) अधिनियम, 1985 निजी कंपनियों को भारत में अफीम का उत्पादन करने की अनुमति देता है।

ऊपर दिए गए कथनों में से कौन-सा सही है?

- a) केवल 1 और 2
- b) केवल 2 और 3
- c) केवल 1 और 3
- d) 1, 2 और 3

Q.41) भारतीय राजनीति के संदर्भ में, निम्नलिखित कथनों पर विचार कीजिए:

1. मूल संविधान में केवल मौलिक अधिकार थे, मौलिक कर्तव्य नहीं।
2. संविधान निर्माताओं ने राज्य के नीति निर्देशक सिद्धांतों के रूप में राज्य के कर्तव्यों को संविधान में शामिल किया।

ऊपर दिए गए कथनों में से कौन-सा सही है?

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

Q.42) परमादेश (Mandamus) के संदर्भ में निम्नलिखित कथनों पर विचार करें:

1. परमादेश एक सरकारी अधिकारी को अदालत द्वारा जारी एक आदेश है जो उसे अपने आधिकारिक कर्तव्यों का पालन करने के लिए कहता है।
2. परमादेश की रिट किसी निजी व्यक्ति या निकाय के विरुद्ध जारी नहीं की जा सकती।

ऊपर दिए गए कथनों में से कौन-सा सही है?

- a) केवल 1
- b) केवल 2
- c) 1 और 2 दोनों
- d) न तो 1 और न ही 2

Q.43) स्वर्ण सिंह समिति के संदर्भ में निम्नलिखित कथनों पर विचार करें:

1. समिति ने संविधान में मौलिक कर्तव्यों पर एक अलग अनुसूची को शामिल करने की सिफारिश की।
2. समिति नागरिकों द्वारा कर्तव्यों का पालन न करने पर दंड देने का अधिकार देकर कर्तव्यों को न्यायसंगत बनाना चाहती थी।
3. स्वर्ण सिंह समिति ने सुझाव दिया था कि करों का भुगतान करना भी नागरिकों का एक मौलिक कर्तव्य होना चाहिए।

ऊपर दिए गए कथनों में से कौन-सा सही है?

- a) केवल 1 और 2
- b) केवल 2 और 3
- c) केवल 1 और 3
- d) 1, 2 और 3

Q.44) राष्ट्रीय महत्व के घोषित किए गए कलात्मक या ऐतिहासिक हितों के स्मारकों, स्थानों और वस्तुओं की रक्षा के लिए प्राचीन और ऐतिहासिक स्मारक और पुरातत्व स्थल और अवशेष अधिनियम (1951) अधिनियमित किया गया है। संविधान के किस भाग को न्यायोचित ठहराने के लिए अधिनियम लागू किया गया था?

- a) भाग V
- b) भाग III
- c) भाग XII
- d) भाग- IV

Q.45) 'समकालीन वैश्विक स्थिति' के संदर्भ में, निम्नलिखित में से कौन सा कथन अक्सर समाचारों में देखे जाने वाले "वन हेल्थ(One Health)" शब्द का सबसे उपयुक्त रूप से वर्णन करता है?

- a) प्राकृतिक औषधियों के माध्यम से मानव शरीर के स्वास्थ्य को बढ़ावा देने के लिए यह एक अनूठी पद्धति है।
- b) यह पूर्ण शारीरिक, मानसिक और सामाजिक कल्याण की स्थिति है, न कि केवल बीमारी की अनुपस्थिति।
- c) यह एक ऐसा दृष्टिकोण है जो मानता है कि मनुष्यों, जानवरों और पारिस्थितिक तंत्र के स्वास्थ्य परस्पर जुड़े हुए हैं।
- d) यह एक ऐसी प्रणाली है जो प्रभावी स्वास्थ्य परिणाम प्रदान करने के लिए एलोपैथी और आयुर्वेद सहित चिकित्सा के विभिन्न क्षेत्रों को एकीकृत करती है।

Q.46) नीचे दिए गए प्रश्न में, दो कथनों को अभिकथन (A) और कारण (R) के रूप में चिह्नित किया गया है। नीचे दिए गए कूटों के अनुसार अपना उत्तर चिह्नित करें:

अभिकथन (A): मौलिक कर्तव्यों के उल्लंघन के खिलाफ कोई कानूनी दंड नहीं है।

कारण (R): संसद उपयुक्त विधान द्वारा उन्हें लागू करने के लिए स्वतंत्र है।

- a) A सत्य है लेकिन R असत्य है।
- b) A और R दोनों सत्य हैं और R, A की सही व्याख्या करता है।
- c) A और R दोनों सत्य हैं लेकिन R, A की सही व्याख्या नहीं करता है।
- d) A और R दोनों असत्य हैं।

Q.47) मार्शल लॉ या सैनिक कानून के संदर्भ में, निम्नलिखित में से कौन सा कथन सही है?

1. मार्शल लॉ या सैनिक कानून की अवधारणा भारत में अंग्रेजी सामान्य कानून से ली गई है।
2. यह उस स्थिति को संदर्भित करता है जहां नागरिक प्रशासन सैन्य अधिकारियों द्वारा चलाया जाता है।
3. मार्शल लॉ या सैनिक कानून को संविधान में स्पष्ट रूप से परिभाषित किया गया है।
4. मार्शल लॉ या सैनिक कानून की घोषणा से बंदी प्रत्यक्षीकरण की रिट निलंबित हो जाती है।

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- a) केवल 1 और 2
- b) केवल 3 और 4
- c) केवल 1 और 3
- d) केवल 2 और 4

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Q.48) In 1999, the Verma Committee was appointed. What was the purpose of the committee?

- a) To examine the political and administrative structure in the district for the purpose of district planning.
- b) To look into the issue of Centre-State relations.
- c) To look into the issues of linguistic and religious minorities in India.
- d) To identify the existence of legal provisions for the implementation of the fundamental duties.

Q.49) With reference to inclusion of Fundamental Duties by 42nd Amendment Act, which of the following statements is/are correct?

1. The Opposition in the Parliament opposed the inclusion of fundamental duties in the Constitution.

2. A bill was moved by the Janta Party Government to annul the Fundamental duties.

Select the correct answer using the codes given below:

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Q.50) Lilavati Awards, an initiative of the All-India Council for Technical Education aims to recognise which of the following categories of institutions?

- a) Institutions to treat women with equality and fairness
- b) Institutions to provide full accessibility to Divyangs
- c) Institutions to achieve highest accreditation for three years
- d) Institutions to have in-house entrepreneurship cells

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Q.48) 1999 में, वर्मा समिति की नियुक्ति की गई थी। इस समिति का मकसद क्या था?

- जिला नियोजन के उद्देश्य से जिले में राजनीतिक और प्रशासनिक ढांचे की जांच करना।
- केंद्र-राज्य संबंधों के मुद्दे को देखना।
- भारत में भाषाई और धार्मिक अल्पसंख्यकों के मुद्दों पर गौर करना।
- मौलिक कर्तव्यों के कार्यान्वयन के लिए कानूनी प्रावधानों के अस्तित्व की पहचान करना।

Q.49) 42वें संशोधन अधिनियम द्वारा मौलिक कर्तव्यों को शामिल करने के संदर्भ में, निम्नलिखित में से कौन सा/से कथन सही है/हैं?

- संसद में विपक्ष ने संविधान में मौलिक कर्तव्यों को शामिल करने का विरोध किया।
- जनता पार्टी सरकार द्वारा मौलिक कर्तव्यों को रद्द करने के लिए एक विधेयक पेश किया गया था।

नीचे दिए गए कूट का प्रयोग कर सही उत्तर चुनिए:

- केवल 1
- केवल 2
- 1 और 2 दोनों
- न तो 1 और न ही 2

Q.50) लीलावती पुरस्कार, अखिल भारतीय तकनीकी शिक्षा परिषद की एक पहल का उद्देश्य निम्नलिखित में से किस श्रेणी के संस्थानों को मान्यता देना है?

- महिलाओं के साथ समानता और निष्पक्षता के साथ व्यवहार करने वाली संस्थान
- दिव्यांगों को पूर्ण सुगम्यता प्रदान करने वाली संस्थाएं
- तीन वर्षों के लिए उच्चतम प्रमाणन प्राप्त करने वाले संस्थान
- स्वयं के उद्यमिता प्रकोष्ठ वाले संस्थान

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Q.1) With reference to the meaning of State as defined under Article 12 of the Constitution, consider the following statements:

1. A private body working as an instrument of the State falls within the meaning of the 'State'.
2. Urban Improvement Trusts are included in the definition of state.
3. All Private Universities are included as elements of state under Article 12.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Ans) a

Exp) Option a is correct.

Article 12 defines the term 'State' for the purpose of different provisions concerning the fundamental rights.

Statement 1 is correct: The Supreme Court has held that the term 'state' is wide enough to include all authorities created by the Constitution or statute on whom powers are conferred by law. Thus, even a **private body** or an agency working **as an instrument of the State** falls within the meaning of the 'State' **under Article 12**. It is **not necessary** that the statutory authority should be engaged in performing governmental or sovereign function.

Statement 2 is correct: All local authorities, that is, municipalities, panchayats, district boards, improvement trusts, etc. are included under the definition of state under Article 12. According to List II of VII Schedule '**local government**' includes a municipal corporation, **urban improvement trust, district boards, mining settlement authorities** and other local authorities for the purpose of local self-government or village administration.

Statement 3 is incorrect: In Article 12, the **expression 'other authorities' is used** after mentioning the Government, Parliament of India, the Government and Legislature of each of the State and all local authorities. The Madras High Court has held that 'other authorities' could **only** mean **authorities exercising governmental or sovereign functions**. It **cannot include** persons, natural or juristic, such as, **a university unless it is 'maintained by the State'**.

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-7, Fundamental Rights

<http://www.legalservicesindia.com/article/1914/State-Under-Indian-Constitution.html>

Q.2) Consider the following statements with respect to the difference between 'equality before law' and 'equal protection of laws':

1. While equality before law implies equal treatment under equal circumstances, equal protection of law ensures absence of any special privileges for any person.
2. Equality before the law implies the absence of any special privilege in favour of any individual while Equal protection of the law does not forbid different treatment for unequals.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) b

Exp) Option b is correct.

According to Article 14, the State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India.

Statement 1 is incorrect: The concept of '**equality before law**' is of **British origin**. It connotes the **absence of any special privileges** in favour of any person (negative concept). On the contrary, the concept of '**equal protection of laws**' has been taken from the **American Constitution**. It connotes **equality of treatment under equal circumstances**, both in the privileges conferred and liabilities imposed by the laws (positive concept).

Statement 2 is correct: Equality before the law contained in Article 14. Equality before the law is a declaration of equality of all persons within the territory of India, implying thereby the absence of any special privilege in favour of any individual.

Equal protection of law means that amongst equals the law should be equal and should be equally administered and the likes should be treated alike. Thus, what it forbids is discrimination between persons who are substantially in similar circumstances or conditions. **It does not forbid different treatment for unequals.**

Knowledge Base:

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While equality before law implies that no person (whether rich or poor, high or low, official or non-official) is above the law, the equal protection of laws implies that the like should be treated alike without any discrimination.

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-7, Fundamental Rights

Q.3) With reference to the concept of Rule of Law, consider the following statements:

1. In Keshavananda Bharti case the Supreme Court has included the Rule of Law as the basic feature of the Constitution.
2. Immunities and privileges of President against criminal proceedings are exceptions to Rule of Law under the Indian Constitution.
3. In India, according to the Rule of Law, Judicial Supremacy prevails over the Legislature and the Executive.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 only
- c) 1 and 3 only
- d) 3 only

Ans) a

Exp) Option a is correct.

Rule of law means that no man is above law and also that every person is subject to the jurisdiction of ordinary courts of law irrespective of their position and rank.

Statement 1 is correct: In Keshavananda Bharti v. State of Kerala, the Supreme Court has included the Rule of Law as the basic feature of the Constitution. In this case, though the Supreme Court upheld the amending power of the Parliament which extends to every Article provided under the Constitution but has limited that power by providing that such power cannot be used in amending the basic feature of the Constitution.

Statement 2 is correct: There are certain exceptions to rule of law provided under the Indian Constitution and other laws. Public officials like ministers, local authorities, public officers have many powers, immunities and privileges which ordinary citizens don't have. For example, the President/Governor is not answerable to the court of law in discharge of his executive functions.

No criminal proceedings whatsoever can be instituted against President or Governor of state, while he is in office.

Statement 3 is incorrect: In India, Constitutional Supremacy prevails where the Doctrine of Separation of Powers has been held which permits the review of the legislative acts.

Rule of law has no fixed articulation in the Indian constitution though the Indian courts refer to this phrase in variety of its judgements.

Indian constitution is the law of the land and prevails over **Judiciary, the Legislature and the Executive**. These three organs of the state have to act according to the principles engraved in the constitution.

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-7, Fundamental Rights

Q.4) With reference to the exceptions to equality under Article 14 of the Constitution, consider the following statements:

1. No civil proceedings can be instituted against the President during the term of office.
2. Laws made by the state for implementing the Directive Principles contained in Article 39 cannot be challenged on the ground that they are violative of Article 21.
3. The foreign ambassadors and diplomats enjoy immunity from both criminal and civil proceedings.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 and 3 only
- c) 3 only
- d) 1 and 2 only

Ans) c

Exp) Option c is correct.

The rule of equality before law is not absolute and there are constitutional and other exceptions to it.

Statement 1 is incorrect: No criminal proceedings shall be instituted or continued against the President or the Governor in any court during his term office. However **civil proceedings can be instituted after the expiration of two months of delivery of notice**. Thus, no civil proceedings against the President or the Governor shall be instituted during his term of office in any court in respect of act done by him in his personal capacity, whether

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before or after he entered upon his office, until the expiration of two months next after notice has been delivered to him.

Statement 2 is incorrect: Article 31-C is an exception to Article 14. It provides that the laws made by the state for implementing the Directive Principles contained **only in clause (b) or clause (c) of Article 39** (and not complete Article 39) cannot be challenged on the ground that they are violative of Article 14, not Article 21.

Statement 3 is correct: The foreign sovereigns (rulers), ambassadors and diplomats enjoy **immunity from both criminal and civil proceedings**. The UNO and its agencies enjoy the diplomatic immunity

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-7, Fundamental Rights

Q.5) Consider the following statements regarding 'Journal of Threatened Taxa (JoTT)':

1. It is an international journal on conservation and taxonomy.
2. It is published by International Union for Conservation of Nature.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) a

Exp) Option a is correct.

Statement 1 is correct.

Journal of Threatened Taxa (JoTT) is an **open-access peer-reviewed, monthly** international journal on conservation and taxonomy.

Statement 2 is incorrect.

The journal is published by the **wildlife conservation** and research NGO **Zoo Outreach Organisation (ZOO)**.

Source: "Nacaduba Sinhala" - the new butterfly species [ForumIAS Blog]

For 21 years, the Journal of Threatened Taxa has been publishing research and news about conservation and taxonomy - The Hindu

Q.6) With reference to the restrictions imposed on Article 19 of the Constitution, consider the following statements:

1. Under Section 144 of the Criminal Procedure Code, a magistrate can restrain an assembly if there is resistance in the execution of any law.
2. Under Section 141 of the Indian Penal Code, an assembly of five or more people becomes unlawful if they forcibly occupy the property of some person.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) b

Exp) Option b is correct.

Right to assemble peaceably and without arms is one of the six rights guaranteed by Article 19 of the Constitution to all citizens. It includes the right to hold public meetings, demonstrations and take out processions.

Statement 1 is incorrect: An assembly of five or more persons becomes unlawful if the object is to resist the execution of any law or legal process **under Section 141 of the Indian Penal Code (and not CrPC)**. Under Section 144 of Criminal Procedure Code (1973), a magistrate can restrain an assembly, meeting or procession if there is a risk of obstruction, annoyance or danger to human life, health or safety or a disturbance of the public tranquillity or a riot or any affray.

Statement 2 is correct: Under Section 141 of the Indian Penal Code, an assembly of five or more persons becomes unlawful if the object is **to resist the execution of any law or legal process**. Other grounds for imposing restrictions are: if the object is

- 1) to forcibly occupy the property of some person
- 2) to commit any mischief or criminal trespass
- 3) to force some person to do an illegal act
- 4) to threaten the government or its officials on exercising lawful powers

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-7, Fundamental Rights

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Q.7) Which of the following rights are included in both Fundamental Rights of Indian constitution and Universal Declaration of Human Rights?

1. Right against arbitrary arrests
2. Prohibition of forced labour
3. Right to freely practice religion

Select the correct answer using the code given below:

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Ans) d

Exp) Option d is correct.

India was a **signatory** to the Universal Declaration of Human Rights (1948). Thus, great precaution was taken so that Fundamental Rights as mentioned in Part 3 of Indian Constitution is concurrent with the provisions of the Universal Declaration of Human Rights.

Option 1 is correct: Article 21 of the Indian Constitution provides that **no person shall be deprived of his life or personal liberty** excepted according to procedure established by law. Similarly, as per Universal Declaration of Human Rights (UDHR), everyone has the right to life, liberty and security of person and **no one shall be subjected to arbitrary arrest**, detention or exile.

Option 2 is correct: Article 23 (1) of the Indian Constitution **prohibits traffic in human being and 'begar' and other similar forms of forced labour** are prohibited and any contravention of this provision shall be an offence punishable in accordance with law. Similarly, UDHR provides that no one shall be held in slavery or servitude and the slave trade shall be prohibited in all forms.

Option 3 is correct: Article 25 (1) of the Indian Constitution provides that all persons are equally entitled to **freedom of conscience and right freely to profess, practice and propagate religion**, subject to public order, morality and health and to the provisions of this part. Similarly, according to provisions of UDHR, everyone has the right to freedom of thought, conscience and religion.

Source: https://www.worldwidejournals.com/global-journal-for-research-analysis-GJRA/fileview/April_2016_1464957217__58.pdf

Q.8) With reference to the provisions of Article 19 of the Constitution, consider the following statements:

1. The rights are protected against only state actions and not private individuals.
 2. The rights are only available to shareholders of companies and not legal persons like corporations.
- Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) c

Exp) Option c is correct

Article 19 guarantees to all citizens the six rights: freedom of speech and expression, right to assemble peaceably, form associations, move freely, reside and settle in any part of the territory of India and to practice any profession or to carry on any occupation, trade or business.

Statement 1 is correct: The six rights as mentioned in Article 19 are protected against **only state action and not private individuals**. The State can **impose 'reasonable' restrictions** on the enjoyment of these six rights only on the grounds mentioned in the Article 19 itself and not on any other grounds.

Statement 2 is correct: The rights mentioned under Article 19 are available only to the citizens and to shareholders of a company but **not to foreigners or legal persons like companies or corporations, etc.**

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-7, Fundamental Rights

Q.9) On which of the following grounds is discrimination allowed under Article 15 of the Indian Constitution?

1. Special provisions for advancement of Schedule castes and Scheduled Tribes.
2. Provisions for socially and educationally backward classes regarding admission in private educational institutions.
3. Provisions of free education to children.
4. Reservation of up to 15% for economically weaker sections in matters regarding appointments.

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Select the correct answer using the code given below:

- a) 1 and 3 only
- b) 1, 2 and 3 only
- c) 2 and 4 only
- d) 1, 2, 3 and 4

Ans) b

Exp) Option b is correct.

Article 15 provides that the State shall not discriminate against any citizen **on grounds only of religion, race, caste, sex or place of birth**. The use of the word 'only' connotes that discrimination on other grounds is not prohibited.

Option 1 is correct: The state is permitted under Article 15 to make any special provision for the advancement of any socially and educationally backward classes of citizens or for the **scheduled castes and scheduled tribes**. For example, reservation of seats or fee concessions in public educational institutions.

Option 2 is correct: The state is empowered to make any special provision for the advancement of any socially and educationally backward classes of citizens or for the scheduled castes or the scheduled tribes regarding their **admission to educational institutions including private educational institutions**, whether aided or unaided by the state, **except the minority educational institutions**. In order to give effect to this provision, the Centre enacted the Central Educational Institutions (Reservation in Admission) Act, 2006, providing a quota of 27% for candidates belonging to the Other Backward Classes (OBCs) in all central higher educational institutions.

Option 3 is correct: The state is permitted to make any special provision for **women and children**. For example, reservation of seats for women in local bodies or **provision of free education for children**.

Option 4 is incorrect: The state is empowered to make any special provision for the advancement of any economically weaker sections of citizens. The Parliament of India enacted the Constitution (103rd Amendment Act, 2019) and authorized the State to make reservations in higher education and affairs of Public Employment solely on the basis of economy. The act amended Article 15 and 16 of the Constitution by inserting 15(6) and 16(6). The amendment was made to provide for 10% reservation to the citizens, belonging to the Economic Weaker Section (EWS) category.

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-7, Fundamental Rights

Q.10) At present, Foreign Direct Investment (FDI) up to 100% under automatic route is allowed in which of the following sectors in India?

- 1. Hospital Sector
- 2. Insurance Sector
- 3. Brownfield projects in Pharmaceutical Sector
- 4. Telecom Services and telecom infrastructure providers

Select the correct answer using the codes given below:

- a) 1 and 2 only
- b) 1 and 4 only
- c) 2 and 3 only
- d) 3 and 4 only

Ans) b

Exp) Option b is correct.

India's Foreign Direct Investment (FDI) regime in the Health Sector has been liberalised extensively.

- 1) **Currently, FDI is permitted** up to 100% under the automatic route for the **hospital sector and manufacture of medical devices**.
- 2) In the pharmaceutical sector, FDI is permitted up to **100% in greenfield projects**. For the **brownfield projects**, it is up to **74% under the automatic route**.
- 3) Category 1 **telecom services and telecom infrastructure** providers under telecom sector is permitted up to **100% FDI under automatic route**.
- 4) Foreign Direct Investment limit in the **insurance sector** is increased under **the automatic route to 75 per cent** from 49 per cent earlier

Source: NITI Aayog Releases "Investment Opportunities in India's Healthcare Sector" Report (forumias.com)

fdi in telecom: Automatic approval route: Government allows 100% FDI in telecom - The Economic Times

DPIIT notifies 74% FDI cap in insurance sector under automatic route | Business Standard News (business-standard.com)

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Q.11) Consider the following statements with respect to the provisions of Article 16 of the Constitution:

1. Employment to any office under the State shall not be based on grounds only of place of birth.
2. State legislatures may make a law prescribing a requirement of residence for jobs in a particular state.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) a

Exp) Option a is correct.

Article 16 provides for **equality of opportunity** for all citizens in matters of **employment or appointment to any office** under the State. No citizen can be discriminated on grounds of **only religion, race, caste, sex, descent, place of birth or residence**.

Statement 1 is correct: Article 16(2) states that “no citizen shall, on grounds only of religion, race, caste, sex, descent, place of birth, residence shall be discriminated against any employment or office under the State”. The provision is supplemented by the other clauses in the Constitution that guarantee equality.

Statement 2 is incorrect: However, Article 16(3) of the Constitution provides an exception by saying that Parliament, not State legislatures may make a law “prescribing” a requirement of residence for jobs in a particular state. This power vests solely in the Parliament, not state legislatures.

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-7, Fundamental Rights

Q.12) With reference to Article 17 of the Constitution, consider the following statements:

1. Untouchability is defined under the Article as social disabilities arising out of birth of persons in certain castes.
2. It is available against the actions of private individuals.
3. The Protection of Civil Rights Act, 1955, was enacted for effective implementation of Article 17.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Ans) b

Exp) Option b is correct.

Article 17 abolishes ‘untouchability’ and forbids its practice in any form. The enforcement of any disability arising out of Untouchability shall be an offence punishable in accordance with law.

Statement 1 is incorrect: The term ‘untouchability’ has **not been defined either in the Constitution** or in the Protection of Civil Rights Act, 1955. However, the Mysore High Court held that the subject matter of Article 17 is not untouchability in its literal or grammatical sense but the ‘practice as it had developed historically in the country’. It refers to the social disabilities imposed on certain classes of persons by reason of their birth in certain castes. Hence, it **does not cover social boycott of a few individuals or their exclusion from religious services, etc.**

Statement 2 is correct: The Supreme Court held that the right under Article 17 is **available against private individuals**. In *People’s Union for Democratic Rights v UOI*, the Supreme Court held that whenever a fundamental right contained in Articles 17, 23 or 24 is being violated by a private individual, the State can take necessary steps to interdict such violation.

Statement 3 is correct: Under Article 17, the enforcement of any disability arising out of untouchability **shall be an offence punishable** in accordance with law. In 1976, the Untouchability (Offences) Act, 1955 has been comprehensively amended and renamed as the Protection of Civil Rights Act, 1955 to enlarge the **scope and make penal provisions more stringent**. The act defines civil right as any right accruing to a person by reason of the abolition of untouchability by Article 17 of the Constitution.

Source: Indian Polity, M. Laxmikanth, 6th Edition, Chapter-7, Fundamental Rights

Q.13) “A farmer’s union wanted to organise hunger strikes and take out processions against the decision of the district administration. But their demand is not met by the district administration.”

Which of the following fundamental rights is violated in the above situation?

- a) Article 15

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- b) Article 19
- c) Article 32
- d) Article 21

Ans) b

Exp) Option b is correct.

The right to protest involves the exercise of two fundamental rights: freedom of speech and expression under Article 19 (1) (a) of the Constitution and the freedom to assemble peacefully under 19 (1) (b).

Article 19(1)(a) of the Indian constitution “Freedom of speech and expression” is a fundamental right given to its citizen against the state, which includes carrying out the peaceful public demonstration.

Article 19(1)(b) provides for the right to assemble peaceably and without arms. This includes the right to hold public meetings, **hunger strikes, and the right to take out processions.**

Q.14) Which of the following statements **is/are incorrect** regarding minority educational institutions (MEIs)?

1. MEIs recognised but unaided by the State are not subjected to regulatory power of state.
2. All MEIs should provide 25% reserved seats to children belonging to economically backward section of society.
3. National Eligibility-cum-Entrance Test (NEET) does not apply to unaided minority educational institutions.

Select the correct answer using the code given below:

- a) 1 and 2 only
- b) 2 only
- c) 3 only
- d) 1, 2 and 3

Ans) d

Exp) Option d is correct.

Article 30 of the Indian Constitution states the right of minorities to establish and administer educational institutions. It says: “All minorities, whether based on religion or language, shall have the right to establish and administer educational institutions of their choice.”

Statement 1 is incorrect. Any minority educational institutions (MEIs) which **seek recognition from the state but not aid from the state are subjected** to regulatory power of state with regard to syllabus prescription, academic standards, discipline, sanitation etc. MEIs which **neither seek recognition from the state nor aid from the state can manage their own affairs**, but general laws, labour law, taxation law, industrial law etc still apply to these institutions.

Statement 2 is incorrect. The RTE 2009 mandates all private schools to reserve 25 per cent seats to students from economically weaker sections at the entry level.

The Supreme Court in *Society for Un-Aided Private Schools of Rajasthan v. Union of India* held that the **Right of Children to Free and Compulsory Education Act, 2009 is not applicable** to unaided minority schools. Thus, **MEIs are not** required to provide admission to children in the age group of 6-14 years up to 25% of enrolment reserved for economically backward section of society

Statement 3 is incorrect. The Supreme Court has ruled that the National Eligibility-cum-Entrance Test (NEET) for admissions to these courses **would also apply to minority – both aided and unaided** and private educational institutions. The Constitution provides a limitation on the power of the State to interfere with life, liberty and rights however, the concept of limited government cannot be extended to a level when **it defeats national interest**. So, providing central examination in the form of NEET cannot be said to be violation of the rights under Articles 19(1)(g) and 30 of the Constitution.

Source: Laxmikanth 6th edition chapter- 7 page- 7.19

<https://rsrr.in/2021/07/17/supreme-court-of-india-on-minority-education-institutions-regarding-students-admission-and-medium-of-instruction/>

<https://www.tribuneindia.com/news/editorials/neet-and-clean-78712>

Q.15) Consider the following statements regarding AIM-PRIME:

1. The program is launched by Ministry of Skill Development in association with Bill & Melinda Gates Foundation.
2. It is open to technology developers with strong science-based deep tech business ideas.
3. It will provide training and guidance for a period of five years.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 only
- c) 2 and 3 only

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d) 3 only

Ans) b

Exp) Option b is correct.

Statement 1 is incorrect.

Atal Innovation Mission (AIM), NITI Aayog in association with Bill & Melinda Gates Foundation (BMGF) has launched AIM-PRIME (Program for Researchers on Innovations, Market-Readiness & Entrepreneurship).

Statement 2 is correct.

The program is open to technology developers (early-stage deep tech start-ups, and scientists/ engineers/ clinicians) with **strong science-based deep tech business ideas**. The candidates selected for the program will get access to in-depth learning resources via a comprehensive lecture series, live team projects, exercises, and project-specific mentoring.

Statement 3 is incorrect.

AIM-PRIME Program aims at promoting science-based, deep technology. For that, it will provide training and guidance over a period of 12 months and not for the period of five years.

Source: NITI Aayog launches "AIM-PRIME" to support science based startups -ForumIAS Blog

<https://pib.gov.in/PressReleaseIframePage.aspx?PRID=1708798>

Q.16) Consider the following statements regarding Padma awards in India.

1. Bharat Ratna and Padma Vibhushan were instituted in 1954.
2. A formal recommendation should be submitted to the President by the Cabinet for Bharat Ratna.
3. These awards were discontinued by the Janata Party government in 1977.
4. The Padma Awards Committee is headed by the Prime Minister.

Which of the statements given above is/are correct?

- a) 1 and 3 only
- b) 2 and 4 only
- c) 2, 3 and 4 only
- d) 1, 2, 3 and 4

Ans) a

Exp) Option a is correct.

The Padma Awards are one of the highest civilian honours of India announced annually on the eve of Republic Day. The Awards are given in three categories: Padma Vibhushan (for exceptional and distinguished service), Padma Bhushan (distinguished service of higher order) and Padma Shri (distinguished service). The award seeks to recognize achievements in all fields of activities or disciplines where an element of public service is involved.

Statement 1 is correct: The Government of India instituted two civilian awards-Bharat Ratna & Padma Vibhushan in 1954. The latter had three classes, namely Pehela Varg, Dusra Varg and Tisra Varg. These were subsequently renamed Padma Vibhushan, Padma Bhushan and Padma Shri in 1955.

Statement 2 is incorrect: Bharat Ratna is the highest civilian award of the country. It is awarded in recognition of exceptional service/performance of the highest order in any field of human endeavour. It is treated on a different footing from Padma Award. The recommendations for Bharat Ratna are made by the Prime Minister to the President of India. **No formal recommendations for Bharat Ratna are necessary.**

Statement 3 is correct: Padma Awards, which were instituted in the year 1954, is announced every year on the occasion of Republic Day except for brief interruption(s) during the years 1978 and 1979 and 1993 to 1997. These awards were discontinued by **Janta Party government which came to power in 1977**, headed by Morarji Desai, but were again **revived by Indira Gandhi government**.

Statement 4 is incorrect: All nominations received for Padma Awards are placed before the Padma Awards Committee, which is constituted by the Prime Minister every year. **The Padma Awards Committee is headed by the Cabinet Secretary** and includes Home Secretary, Secretary to the President and four to six eminent persons as members. The recommendations of the committee are submitted to the **Prime Minister and the President of India for approval**.

Source: <https://www.padmaawards.gov.in/AboutAwards.aspx>

<https://www.dnaindia.com/india/report-india-to-institute-national-awards-for-foreigners-2933400>

Q.17) In the context of Article 18, which of the following statements is/are correct?

1. The hereditary titles of nobility conferred by colonial State are prohibited by Article 18.
2. The Supreme Court upheld that Padma Awards can be used as suffixes or prefixes to the names of awardees.

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Select the correct answer using the code given below:

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) a

Exp) Option a is correct.

Article 18 of Constitution of India **abolishes titles** and prohibits the government from bestowing any title on any citizen or foreigner (except military or academic distinction)

Statement 1 is correct: The hereditary titles of nobility conferred by colonial States, such as Maharaja, Raj Bahadur, Rai Bahadur, Rai Saheb, Dewan Bahadur, and so on, **are prohibited** by Article 18 because they violate the principle of equal status for all.

Statement 2 is incorrect. In 1996, the Supreme Court **upheld the constitutional validity** of the National awards. The Supreme Court said that National Awards **do not amount to 'titles'** within the meaning of Article 18 that prohibits only hereditary titles of nobility.

Therefore, they are not violative of Article 18 as the theory of equality does not mandate that merit should not be recognized. However, they should **not be used as suffixes or prefixes** to the name of the awardees

Source: Laxmikanth 6th edition chapter- 7 page- 7.10

Q.18) Consider the following statements regarding Diplomatic immunity?

1. It is an immunity granted to diplomats from all national, regional or municipal taxes in respect of the premises of their mission.
2. Diplomatic immunity is not available to the families of diplomats under the under the Vienna Convention of Diplomatic Relations, 1961.

Which of the statements given above **is/are incorrect**?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) b

Exp) Option b is correct.

Diplomatic immunity is granted on the basis of two conventions popularly called the Vienna Conventions -the Convention on Diplomatic Relations, 1961, and the Convention on Consular Relations, 1963.

Statement 1 is correct. Diplomatic immunity is one of the principles of international law which limits the degree to which the officials and employees of foreign governments would be subject to the other country's authority of police officers and judges.

Vienna Convention of 1961 under Article 34 lays down those diplomatic agents shall be exempted from all duties and Taxes imposed, whether personal or real, national, regional, or Municipal.

The sending State and the head of the mission shall be exempt from **all national, regional or municipal dues and taxes in respect of the premises of the mission**, whether owned or leased, other than such as represent payment for specific services rendered.

Statement 2 is incorrect. The Vienna Convention classifies diplomats according to their **posting in the embassy, consular or international organisations such as the UN**. A nation has only one embassy per foreign country, usually in the capital, but may have multiple consulate offices, generally in locations where many of its citizens live or visit. Diplomats **posted in an embassy get immunity, along with his or her family members**.

The members of the family of a diplomatic agent forming part of his household shall, if they are not nationals of the receiving State, enjoy the privileges and immunities specified in Articles 29 to 36 of the Vienna Convention.

Source: <https://indianexpress.com/article/explained/diplomatic-immunity-belgian-envoys-wife-seoul-7318980/lite/>

<https://indianexpress.com/article/explained/the-immunity-for-diplomats-some-key-issues-the-saudi-case-raises/>

Q.19) In which of the following cases, the writ of habeas corpus is not issued?

1. Detention is outside the jurisdiction of the court.
2. When the martial law is imposed in a state.
3. When the proceeding is for contempt of a legislature or a court.

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4. Where imprisonment is in accordance with a decision rendered by a court of law

Select the correct answer using the code given below:

- a) 1, 2 and 3 only
- b) 2 and 4 only
- c) 1 and 3 only
- d) 1, 3 and 4 only

Ans) d

Exp) Option d is correct.

'Habeas Corpus' literally means "to have a body of". This writ is used to release a person who has been unlawfully detained or imprisoned. By virtue of this writ, the Court directs the person so detained to be brought before it to examine the legality of his detention.

Habeas Corpus cannot be issued in the following cases: 1) When detention is lawful 2) When the **proceeding is for contempt of a legislature or a court** 3) Detention is by a competent court 4) **Detention is outside the jurisdiction of the court.**

The Supreme Court held that the declaration of martial law **does not ipso facto result in the suspension of the writ of habeas corpus**

A writ of habeas corpus will not lie and will be refused by a court

- 1) where the person or authority against whom habeas corpus is sought is not within the territorial jurisdiction of the court.
- 2) Where imprisonment or detention of a person is in accordance with a decision rendered by a court of law or by an authority in accordance with law.

Source: Laxmikanth 6th edition chapter- 7 page- 7.22

Q.20) Which one of the following space programs aims to analyse the interior of the Mars Planet, including its crust, mantle, and core?

- a) Chang'e-5 Mission
- b) InSight Mission
- c) Nozomi Mission
- d) Cassini-Huygens Mission

Ans) b

Exp) Option b is correct.

NASA's InSight Mission aims to study the deep interiors of Mars. It is the first program to analyse the interior of the Red Planet, beneath its surface i.e. its crust, mantle, and core. InSight mission is part of **NASA's Discovery Program (1992).**

InSight Mission is a robotic lander designed to study the deep interior of Mars to learn how all celestial bodies with rocky surfaces, including Earth and the Moon, formed.

The scientific instruments used for the mission are:

- 1) seismometer for detecting quakes;
- 2) sensors for gauging wind and air pressure;
- 3) magnetometer and a heat flow probe designed to take the planet's temperature.

Source: "NASA's InSight lander" Detects Massive Quakes on Mars-ForumIAS Blog

Q.21) Which of the following fundamental rights are available to a person who is arrested or detained under an ordinary law under Article 22?

- 1. Right to know the grounds of arrest
- 2. Right to be produced before the Magistrate
- 3. Right to be released on bail
- 4. Right to consult a Lawyer
- 5. Right to free legal aid
- 6. Right to keep quiet

Select the correct answer using the code given below:

- a) 1, 3, 4, 5 and 6 only
- b) 1, 2 and 4 only
- c) 1, 2, 3, 4 and 5 only
- d) 1, 2, 3, 4, 5 and 6

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Ans) b

Exp) Option b is correct.

Article 22 provides for the Protection against arrest and detention in certain cases.

Statements 1, 2 and 4 are correct

Article 22 confers the following rights on a person who is arrested or the detained under the ordinary law: (i) **The right to be informed of the grounds of arrest.** (ii) **The right to consult and to be defended by the legal practitioner** (iii) **The right to be produced before the magistrate** within a period of twenty-four hours (iv) The right to be released after 24 hours unless the magistrate authorises further detention.

Statements 3, 4 and 6 are incorrect

Section- 50 (2) of CrPC provides that the arrested person has the right to get released on bail by making arrangement for the sureties.

Article- 39A(DPSP) provides free legal aid to people in need.

The right to keep quiet does not have any mention in any Indian law, however, its authority can be derived from **CrPC as well as the Indian Evidence Act.**

Source: Laxmikanth 6th edition chapter- 7 page- 7.15

Q.22) With regard to difference between the Directive Principles and the instrument of instructions issued by the British Government in India, which of the following statements is correct?

- The instrument of instructions was enumerated in the Government of India Act 1919, whereas the Directive Principles are enumerated in part IV of Indian Constitution.
- The instrument of instructions are instructions to executive only whereas the Directive Principles are instructions to both legislature and executive.
- The instrument of instructions is not enforceable whereas the Directive Principles are enforceable.
- The instrument of instructions are the guidelines issued by Governor general, whereas the Directive Principles are constitutional instructions.

Ans) b

Exp) Option b is correct.

The instrument of instructions was issued to the Governor-General and to the Governors of the colonies of India by the British Government under the Government of India Act of 1935.

Part IV of the Constitution of India (Article 36–51) contains the Directive Principles of State Policy (DPSP).

Directive Principles of State Policy (DPSPs) resemble the "Instrument of Instructions" in the Government of India (GoI) Act, 1935.

Option b is correct.

The instrument of instructions was issued to **Governor General and to Governors of the colonies** of India by British government under the Government of India (GoI) Act, 1935, i.e., to the **Executive only**. However, the **DPSPs are the instructions to both legislature and executive.**

Option a is incorrect.

The instrument of instructions was issued by the British Government under the Government of India Act of 1935, not Government of India Act 1919.

Option c and d are incorrect.

Instrument of instructions under Government of India Act 1935 were instructions issued to Governors of the colonies or Governor in general by British government. It was not issued by the Governor-general.

Under the draft constitution these instructions were proposed to issue directives to state and central governments and adopted under Directive Principles of State policies.

Both instrument of instructions and the Directive Principles are not enforceable by court.

Source: Laxmikanth 6th edition chapter- 8 page- 8.1

Q.23) With regard to Directive Principles of state policies (DPSPs), which of the following statements is/are correct?

- Social democracy is ensured by DPSPs whereas economic democracy is ensured by Fundamental duties.
- No matter related to implementation of DPSPs can be appealed for enforcement in court as DPSPs are not justiciable in court.

Select the correct answer using the code given below:

- 1 only
- 2 only
- Both 1 and 2
- Neither 1 nor 2

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Ans) b

Exp) Option b is correct.

DPSP consists of all the ideals which the State should follow and keep in mind while formulating policies and enacting laws for the country.

Statement 1 is incorrect: Social and economic democracy is ensured by DPSPs by promoting justice in social, economic, and political order, whereas **political democracy is ensured by Fundamental rights** by guaranteeing equality, liberty, religious freedom and cultural rights.

Statement 2 is correct: DPSPs are not enforceable or **non-justiciable** in the court of law. So, this does not allow persons to move to the court for their enforcement if and when they are violated. Thus, no matter related to implementation of DPSPs can be appealed in court. DPSPs **require legislation** for their implementation.

Source: Laxmikanth 6th edition chapter- 8 page- 8.6

Q.24) Which of the following directives to the state are outside Part IV of the Constitution?

1. The claims of the members of the Scheduled Castes and the Scheduled Tribes to services and posts to the Union or a State.
2. To provide instruction in the mother-tongue at the primary stage of education to children belonging to linguistic minority groups.
3. To encourage settlement of international disputes by arbitration.
4. To promote the spread of Hindi language as a language of communication between the union and states.

Select the correct answer using the code given below:

- a) 1, 2 and 3 only
- b) 3 and 4 only
- c) 1, 2 and 4 only
- d) 1, 2, 3 and 4

Ans) c

Exp) Option c is correct.

Directive Principles of State Policy are mentioned in **Articles 36-51, Part IV of the Constitution**. Apart from the articles mentioned in Part IV of the constitution, there are some other articles in the constitution which enjoin on the state the task to make certain policies for people and non-justiciable in nature

Statement 1 is correct. According to **Article 335** mentioned in **Part XVI**, the claims of the members of the **Scheduled Castes** and the **Scheduled Tribes** shall be taken into consideration, consistently with the maintenance of efficiency of administration, in the making of appointments to **services and posts** in connection with affairs of the Union or a State.

Statement 2 is correct. **Article 350 A of Part XVII** suggests that every state and every local authority within state will provide adequate facilities for instruction in the **mother-tongue** at the **primary stage** of education to children belonging to **linguistic minority groups**.

Statement 3 is incorrect. The directive principle included as Liberal-Intellectual principle under **Article 51 of Part IV** promotes international peace and security and maintain just and honourable relations between nations; foster respect for international law and treaty obligations and encourage settlement of **international disputes** by **arbitration**.

Statement 4 is correct. **Article 351** mentioned in **Part XVII** enjoins the Union to promote the spread of Hindi language and to develop it so that it may serve as a medium of expression of all elements of the composite culture of India.

Source: <https://egyankosh.ac.in/bitstream/123456789/57875/1/Unit5.pdf>

Q.25) Consider the following statements regarding National Super Computing Mission:

1. Param Brahma was the first supercomputer assembled indigenously and installed under this mission.
2. The implementing agency of the mission is National Informatics Centre (NIC), under the Ministry of Electronics and Information Technology.
3. The phase III of the mission will take the computing speed to around 150 Petaflops in India.

Which of the statements given above is/are **incorrect**?

- a) 1 and 2 only
- b) 2 only
- c) 2 and 3 only
- d) 1, 2 and 3

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Ans) d

Exp) Option d is correct.

Statement 1 is incorrect.

Param Shivay was the first supercomputer assembled indigenously, installed in IIT(BHU) under the mission. Param Shakti and Param Brahma supercomputer installed at IIT-Kharagpur and IISER, Pune respectively.

Statement 2 is incorrect.

Department of Science and Technology and Department of Electronics and Information Technology (DeitY) through the Centre for Development of Advanced Computing (C-DAC) and Indian Institute of Science (IISc), Bengaluru is an implementing agency of National Super Computing Mission.

Statement 3 is incorrect.

Under phase III, the mission will take the computing speed to around **45 Petaflops**. This will include three systems of 3 PF each and one system of 20PF as a national facility.

Source: National Super Computing Mission (NSM)-ForumIAS Blog

Q.26) With reference to the implications associated with Article 25, consider the following statements:

1. The Article covers only the right to religious practices and not rituals and ceremonies.
2. The right is available to both the citizens of India and non-citizens.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) b

Exp) Option b is correct.

Article 25 guarantees the freedom of conscience, the freedom to profess, practice and propagate religion to all citizens.

Statement 1 is incorrect. The article 25 provides right to all persons to perform various religious practices, rituals, ceremonies and exhibit religious beliefs. It also provides rights to profess which includes declaration of one's religious beliefs and faith openly and freely. Hence the article is **not limited to religious practices** only.

Statement 2 is correct. The rights under Article 25 are **available to both** citizens and non-citizens.

Knowledge Base:

The freedom under article 25 is subject to public order, health and morality.

- This article also gives a provision that the State can make laws that regulates and restricts any financial, economic, political or other secular activity associated with any religious practice; that provides for the social welfare and reform or opening up of Hindu religious institutions of a public character to all sections and classes of Hindus. Under this provision, Hindus are construed as including the people professing the Sikh, Jaina or Buddhist religions and Hindu institutions shall also be construed accordingly.
- People of the Sikh faith wearing & carrying the kirpan shall be considered as included in the profession of the Sikh religion

Source: LAXMIKANT (Fundamental Rights)

https://www.lkouniv.ac.in/site/writereaddata/siteContent/202004092006210960varun_law_Freedom_of_religion.pdf

Q.27) Which of the following statements is/are correct about the concept of 'Police State'?

1. It puts forward that the state can perform various functions of social welfare.
2. It is concerned with the maintenance of law and order and defense of the country against external aggression.
3. Laissez faire is the fundamental economic system and policy followed by all Police states.

Select the correct answer using the code given below.

- a) 1 and 2 only
- b) 1 and 3 only
- c) 2 only
- d) 1, 2 and 3

Ans) c

Exp) Option c is correct.

The state has been envisaged from various points of view. The Classical liberalism or Police State is the concept of the 18th and the early 19th century, which supported the negative state with minimal functions.

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Statement 1 is incorrect. The concept of Police State is also known as 'Classical liberalism' is based on the theory of 'individualism'. It regards the state as a **necessary evil** because of the selfish nature of man and an evil, because state is an enemy of individual liberty. While it is the concept of Welfare state that is based on the 'theory of revisionist' where it is assumed that the state can perform various functions of social welfare.

Statement 2 is correct. The police state is under which state plays negative role & which helped in maintenance of law and order, protecting the nation from **external aggression**, dispensing justice to its citizens and collecting taxes for financing such activities. The system was later replaced by welfare state when importance of alleviating the poor, regulating individual enterprise and most importantly bringing about social justice was realized.

Statement 3 is incorrect. Laissez faire is an economic environment in which transactions between private parties' tariffs, government subsidies, and government regulation is enforced against theft and to protect the property rights of Monopoly. It is a philosophy or practice is usually that there is no guidance or intervention, especially with individual freedom of choice and action.

Police states does not necessarily follow laissez faire.

The theory of 'laissez faire' has changed the role of government and thereby the transformation of the 'police state' to the 'welfare state'. It has necessitated the need for conferring more power on the administration and simultaneously the need for controlling this power.

Source: <https://egyankosh.ac.in/bitstream/123456789/21017/1/Unit-%2011.pdf>

<https://www.iilsindia.com/blogs/change-in-the-concept-of-state-from-laissez-faire-to-social-welfare-state/#:~:text=It%20was%20primarily%20a%20police,taxes%20for%20financing%20such%20activities.&text=This%20led%20to%20the%20establishment,even%20in%20case%20of%20India.>

Q.28) Consider the following statements:

1. The Constitution provides that it shall be the duty of the Union to promote the spread of the Hindi language.
2. Sitakant Mohapatra Committee was formed to set up the criteria for inclusion of more languages in the Eighth Schedule.
3. The proceedings of the High Court can take place in Hindi language with the authorization of the Governor.

Which of the statements above is/are correct?

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Ans) d

Exp) Option d is correct.

The Eighth Schedule to the Constitution consists of the 22 official languages of India. The Constitutional provisions relating to the Eighth Schedule occur in articles 344(1) and 351 of the Constitution.

Statement 1 is correct. Article 351 of the Constitution provides that it shall be the duty of the Union to promote the **spread of the Hindi language** to develop. Thus, it may serve as a medium of expression for all the elements of the composite culture of India.

Statement 2 is correct. A Committee was set up in September, 2003 under the Chairmanship of **Shri Sitakant Mohapatra** to evolve a set of objective criteria for inclusion of more languages in the Eighth Schedule to the Constitution. The Committee submitted its report in 2004.

Statement 3 is correct. Article 348 (1) of the Constitution of India provides that all proceedings in the Supreme Court and in every High court shall be in English Language until Parliament by law otherwise provides.

Under Article 348 (2), the **Governor of a State** may, with the previous **consent of the President**, authorize the **use of the Hindi language**, or any other language in proceedings in the **High Court** having its principal seat in that State. But nothing in this clause shall apply to any judgment, decree or order passed or made by such High Court.

Source: <https://rajbhasha.gov.in/en/constitutional-provisions>

https://www.mha.gov.in/sites/default/files/Eighth_Schedule.pdf

Laxmikant-(CHAPTER- DPSP)

Q.29) With reference to Directive Principles of State Policy (DPSPs), consider the following statements:

1. Any law giving effect to any of the DPSPs cannot be questioned in the court.
2. The DPSPs help the court in examining and determining the constitutional validity of a law.

Which of the above-mentioned statements is/are correct?

- a) 1 only
- b) 2 only

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- c) Both 1 and 2
d) Neither 1 nor 2

Ans) b

Exp) Option b is correct.

The Directive Principles of State Policy are enumerated in Part IV of the Constitution from Articles 36 to 51. Features of the DPSPs are:

Statement 1 is incorrect - Parliament after the Golaknath case brought 25th Constitutional Amendment Act (CAA), which inserted Article 31C in Part III. As per Article 31C(b): Any such law which contains the declaration that it is to give effect to DPSPs in Article 39(b) and Article(c) **shall not be questioned in a court of law**. The above amendment was challenged in the Kesavananda Bharati Case (1973). **This clause of Article 31C was as declared as unconstitutional and void as it was against the Basic Structure** of the Constitution propounded in this case itself.

Statement 2 is correct - The Directive Principles, **though non-justiciable in nature, help the courts in examining and determining the constitutional validity of a law**. The Supreme Court has ruled many a times that in determining the constitutionality of any law, if a court finds that the law in question seeks to give effect to a Directive Principle, it may consider such law to be 'reasonable' in relation to Article 14 (equality before law) or Article 19 (six freedoms) and thus save such law from unconstitutionality.

The Directive Principles are non-justiciable in nature, that is, they are not legally enforceable by the courts for their violation. Therefore, the government (Central, state and local) cannot be compelled to implement them. Source: M Laxmikant – Chapter – Directive Principle of State Policies

Q.30) Which one of the following organizations undertakes 'Election Visitor and Observation Program' in order to increase awareness regarding different election systems?

- a) Election Commission of India
b) Association of World Election Bodies
c) International Foundation for Electoral Systems
d) European Commission for Democracy

Ans) b

Exp) Option b is correct.

Association of World Election Bodies(A-WEB) was established in 2013 in South Korea. It is the largest association of Election Management Bodies (EMBs) worldwide. A-WEB undertakes **Election Visitor and Observation Program in various countries**. These programs aim to study various election management practices and share knowledge with other Member of EMBs.

At present A-WEB has 115 EMBs as Members & 16 Regional Associations/Organisations as Associate Members. ECI is very closely associated with the process of formation of A-WEB since 2011. India is currently chairing A-WEB for the 2019-21 term.

Source: IEVP or International Virtual Election Visitors Programme (IVEP) 2021 (forumias.com)

Election Visitor Program<What We Do> A-WEB (aweb.org)

Q.31) In the context of Directive Principles of State Policy, which of the following statement correctly describes the importance of Article 31C?

- a) It was introduced to overturn the Kesavananda Bharti Case verdict that made Fundamental Rights sacrosanct.
b) It protects acts and regulations included in the ninth schedule from being challenged in the court of law.
c) It diluted the Right to Equality (Article 14) and Freedom of Speech and Expression (Article 19) of the constitution in favor of some DPSPs.
d) It directs the state that operation of economic system should not result in concentration of wealth.

Ans) c

Exp) Option c is correct.

Article 31C has been amended many times for the implementation of DPSPs. The features and significance of the Article is:

Option a is incorrect - Article 31C was inserted in the Constitution by 25th Amendment Act, 1971. It was introduced to **overturn the SC judgement in the Golaknath case in 1967**. Supreme Court has specified that Fundamental rights cannot be abridged or diluted in any case. The parliament responded again by bringing the 25th Amendment Act of the constitution which inserted Article 31C in Part III.

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Option b is incorrect - Article 31(B) protects the acts and regulations included in the Ninth Schedule from being challenged and invalidated on the ground of contravention of any of the fundamental rights. However, the Supreme Court in its judgement in the **I.R. Coelho case (2007)** ruled that **even laws under the Ninth Schedule would be open to scrutiny** if they violated Fundamental Rights or the basic structure of the Constitution.

Option c is correct - Article 31C says that no law that seeks to implement socialistic directive principles **specified in Articles 39 (b) and (c)**, shall be declared void on the grounds of contravention of the fundamental rights conferred by **Article 14 or Article 19**. It has been upheld by the Supreme court in Kesavananda Bharti Case, 1973. When the parliament brought 42nd Amendment Act to allow the abridgment for any of the DPSPs, the court nullified it through Minerva Mills Case, 1980 stating there should be balance between DPSPs and Fundamental Right.

Option d is incorrect - **Article 39 (c) says that** The State shall, in particular, direct its policy towards securing: that the operation of the economic system does not result in the concentration of wealth and means of production to the common detriment.

Source: M Laxmikant – Chapter – Directive Principle of State Policies

Q.32) With reference to Directive Principles of State Policy, consider the following statements:

1. Article 37 gives the executive the freedom to make DPSPs justiciable or non-justiciable.
 2. Parliament enacted the first constitutional amendment act to give way to implementing some of the DPSPs.
- Which of the above-mentioned statements is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) None of the above

Ans) b

Exp) Option b is correct.

The Directive Principles along with the Fundamental Rights contain the philosophy of the Constitution and is the soul of the Constitution. Some of the features of DPSPs are:

Statement 1 is incorrect - The Directive Principles are non-justiciable in nature, that is, they are not legally enforceable by the courts for their violation. Therefore, the government (Central, state and local) cannot be compelled to implement them. **There is no freedom to the executive to make it justiciable or non-justiciable.** It can only be done by amending the constitution through the Parliament.

Statement 2 is correct - In the *Champakam Dorairajan* case (1951), the Supreme Court ruled that in case of any conflict between the Fundamental Rights and the Directive Principles, the former would prevail. It declared that the Directive Principles have to conform to and run as subsidiary to the Fundamental Rights. But, it also held that the Fundamental Rights could be amended by the Parliament by enacting constitutional amendment acts. **As a result, the Parliament made the First Amendment Act (1951), the Fourth Amendment Act (1955) and the Seventeenth Amendment Act (1964) to implement some of the Directives.**

Source: M Laxmikant – Chapter – Directive Principle of State Policies

Q.33) With reference to the usefulness of Directive Principles of State Policy, which of the following statements is/are correct?

1. It has greatly reduced constitutional conflicts between the Centre and State.
2. It helps in providing stability and continuity in domestic policies.

Choose the correct answer from the options given below:

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) b

Exp) Option b is correct.

DPSPs are fundamental in the governance of the country and it shall be the duty of the state to apply these principles in making laws. Importance of DPSPs are:

The Directive Principles constitute a very comprehensive economic, social and political programme for a modern democratic State. Dr. B.R. Ambedkar had pointed out that the **Directives have great value because they lay down that the goal of Indian polity is 'economic democracy'** as distinguished from 'political democracy'. We can see

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articles in DPSPs like 39(b) and 39(c) that focus on distribution of wealth and prevents the concentration of wealth in one individual. Also it promotes the involvement of workers in the management of industries.

Statement 1 is incorrect – Scholars have pointed out that the **Directives lead to a constitutional conflict** (a) between the Centre and the states, (b) between the President and the Prime Minister, and (c) between the governor and the chief minister. According to them, the Centre can give directions to the states with regard to the implementation of these principles, and in case of non-compliance, can dismiss the state government. Similarly, when the Prime Minister gets a bill (which violates the Directive Principles) passed by the Parliament, the president may reject the bill on the ground that these principles are fundamental to the governance of the country and hence, the ministry has no right to ignore them. The same constitutional conflict may occur between the governor and the chief minister at the state level.

Statement 2 is correct – DPSPs facilitate stability and continuity in domestic and foreign policies in political, economic and social spheres in spite of the changes of the party in power. It provides the continuity because no government or party can ignore this. It provides for the provision of the welfare state in the country. It acts as a political manifesto for all the parties to work upon.

Source: M Laxmikant – Chapter – Directive Principle of State Policies

Q.34) Which of the following correctly describes the term Fabian Socialism?

- a) It believes in complete revolution or armed struggle to change the economic structure.
- b) They focus on ownership of all wealth with the government for development.
- c) They advocated for the necessity of the state and projected it as the ultimate arbiter of all disputes.
- d) They called for worker's control of industries through a system of national guilds.

Ans) c

Exp) Option c is correct.

Fabian socialism is a variety of socialism. For the propagation of socialist ideals and ideas the Fabian Society was formed in 1883 (some say that it was established in 1884). Features are as follows:

Option a is incorrect – The purpose of the Fabian Society was to **reach the goals of socialism through evolutionary or parliamentary process and to avoid revolution or armed struggle**. It is against complete revolution or armed struggle as it believes that it can ensure only temporary relief but in the long run may cause disastrous results. It includes parliamentary processes like Universal Adult Franchise, periodic elections; enact laws by representatives etc. for the functioning of society

Option b is incorrect – The programme of the Fabian socialists is that economic power should be so restructured as to reduce the economic inequalities among classes and people to a minimum and tolerable level. Fabian's advocacy for nationalisation of key industries does not surprise us. But **they did not support the management of the entire economy by the state**. It advocates nationalization of key industries in the economic structure of the society, but did not support management of entire economy by state.

Option c is correct – The socialists (especially the Marxists) thought of capturing the state power because in their judgment it was the instrument of exploitation. But the **Fabians did not see or treat the state in that light. They felt the necessity of state and it was the ultimate arbiter of all disputes**. Though powers shall be rested in the hands of state it would have no opportunity to exercise it arbitrarily.

Option d is incorrect – **Guild socialism is a political movement advocating workers' control of industry through the medium of trade-related guilds** "in an implied contractual relationship with the public". It originated in the United Kingdom and was at its most influential in the first quarter of the 20th century. It was strongly associated with G. D. H. Cole and influenced by the ideas of William Morris.

Source: <https://www.politicalsciencenotes.com/socialism/socialism-fabian-and-marxist-socialism/821>

Q.35) Which one of the following statements correctly describe the objective of recently launched 'Anamaya Initiative' by Government of India?

- a) It will set up a non-lapsable Fund for enhancing safety and security of women.
- b) It is a scholarship scheme to support young girls studying in Engineering colleges.
- c) It aims to improve the health and nutrition status of the tribal communities of India.
- d) It aims to provide opportunities to motivated scientists, engineers and field-level activists to take up time-bound research-oriented projects.

Ans) c

Exp) Option c is correct.

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Anamaya is a multi-stakeholder initiative of the Ministry of Tribal Affairs. Piramal Foundation and Bill and Melinda Gates Foundation (BMGF) are supporting it. Anamaya Initiative aims to converge efforts of various Government organizations. It is to **improve the health and nutrition status of the tribal communities** of India.

It will bring together governments, philanthropists, national and international foundations, NGOs/CBOs for the health of the tribal communities. It will function in **50 Aspirational tribal districts** initially (with more than 20% ST population) across 6 high tribal population states. Lastly, over a 10-year period, the work of the Anamaya will be extended to 177 tribal Districts. The Ministry of Tribal Affairs will select the districts.

Source: Government launches "Anamaya Initiative" - For Tribal Health (forumias.com)

Q.36) With regard to fundamental rights under Article 23, which of the following statements **is/are incorrect**?

1. Whenever any service is taken by the State from any person, the state is bound to pay him.
2. This right is provided only against the actions of state and not private citizens.
3. The State is permitted to make any discrimination on grounds only of religion, race, caste or class in imposing compulsory service.

Select the correct answer using the code given below:

- a) 1 and 2 only
- b) 2 only
- c) 2 and 3 only
- d) 1, 2 and 3

Ans) d

Exp) Option d is correct.

Article 23 provides for the Prohibition of traffic in human beings and forced labour.

Article 23(1): Traffic in human beings and the beggar and other similar forms of forced labour are prohibited and any contravention of this provision shall be an offence punishable in accordance with the law.

Statement 1 is incorrect: Article 23 **does not prevent the state to impose compulsory services** for public purposes like military service or social service. For this, **the state is not bound to pay**.

Statement 2 is incorrect: Article 23 protects citizens **not only against the State but also from private citizens**. The State is obliged to protect citizens from these evils by taking punitive action against perpetrators of these acts (which are considered crimes), and also take positive actions to abolish these evils from society

Statement 3 is incorrect. In making any such service compulsory for public purposes, the State, however, **cannot make discrimination** on the basis of religion, race, caste or class or any of them.

Source: Laxmikanth 6th edition chapter- 7 page- 7.16

Q.37) Which of the following are the programmes or institutions started by Indian government ensures the implementation of Directive Principles of State Policy?

1. 10% reservation to the Economically Weaker Sections
2. Setting up of National Commission for Backward Classes
3. Establishment of planning commission
4. Nationalization of life insurance

Select the correct answer using the codes given below:

- a) 1, 2, and 3 only
- b) 2, 3 and 4 only
- c) 1, 3 and 4 only
- d) 1, 2, 3 and 4

Ans) d

Exp) Option d is correct.

Since 1950, the successive governments at the Centre and in the states have made several laws and formulated various programmes for implementing the Directive Principles.

Statement 1 is correct: In 2019, the **central government** issued **orders providing 10% reservation to the Economically Weaker Sections (EWSs)** in admission to educational institutions and civil posts and services in the Government of India. The benefit of this reservation can be availed by the persons belonging to EWSs who are not covered under any of the existing schemes of reservations for SCs, STs and OBCs. This reservation was facilitated by the 103rd Amendment Act of 2019.

Article 46 provides that the State shall promote educational and economic interests of the weaker sections of the people particularly that of the Scheduled Castes (SCs), Scheduled Tribes (STs) and other weaker sections.

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Statement 2 is correct: Various national-level commissions have been established to promote and protect the social, educational and economic interests of the weaker sections of the society. These include the National Commission for Backward Classes (1993), the National Commission for Minorities (1993), the National Commission for Women (1992) and the National Commission for Protection of Child Rights (2007). Further, the **102nd Amendment Act of 2018** conferred a **constitutional status on the National Commission for Backward Classes** and also enlarged its functions.

Statement 3 is correct: The **Planning Commission was established in 1950** to take up **the development of the country in a planned manner**. The successive Five Year Plans aimed at securing socioeconomic justice and reducing inequalities of income, status and opportunities. In 2015, the Planning Commission was replaced by a new body called NITI Aayog (National Institution for Transforming India).

Article 39 of the Indian Constitution, specifically deals with the provisions or principles of policy that shall be undertaken by the state.

Statement 4 is correct: Various measures have been taken to utilise the financial resources for promoting the common good. These **include nationalisation of life insurance (1956)**, the nationalisation of fourteen leading commercial banks (1969), nationalisation of general insurance (1971), abolition of Privy Purses (1971) and so on. Nationalization implements provisions of Article 39. It says that Certain principles of policy to be followed by the State: The State shall, in particular, direct its policy towards securing that the ownership and control of the material resources of the community are so distributed as best to subserve the common good.

In spite of these steps by the Central and state governments, the Directive Principles have not been implemented fully and effectively due to several reasons like inadequate financial resources, unfavourable socio-economic conditions, population explosion, strained Centre-state relations and so on.

Source: Indian polity by M laxmikanth. 6th edition pdf. Page no. 261

Q.38) Consider the following statements with reference to the Fundamental Rights and Directive Principles of State Policy:

1. Fundamental Rights are mostly negative in nature while the Directive Principles are positive in nature.
2. Fundamental Rights generally promote the welfare of the community while the Directive principles promote the welfare of the individuals only.
3. Fundamental Rights have the legal sanctions while the Directive principles of state policy have moral and political sanctions.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Ans) c

Exp) Option c is correct.

Statement 1 is correct. Articles 12-35 of Indian Constitution deal with **Fundamental Rights**. These human rights are conferred upon the citizens of India for the Constitution tells that these rights are inviolable. Right to Life, Right to Dignity, and Right to Education etc. all come under one of the six main fundamental rights. **These are negative as they prohibit the State from doing certain things** and articles 36-51 under Part-IV of the Indian Constitution deal with **Directive Principles of State Policy (DPSP)**. They are borrowed from the Constitution of Ireland. **These are positive** as they require the **State to do certain things**.

Statement 2 is incorrect. **Fundamental rights** promote the **welfare of the individual**. Hence, they are personal and individualistic. And **directive principles** of state policy promote the **welfare of the community**. Hence, they are sociitarian and socialistic.

Statement 3 is correct. **Fundamental rights have legal sanctions** hence they do not require any legislation for their implementation. They are automatically enforced. and **directive principles** have **moral and Political sanctions**. They require legislation for their implementation. They are not automatically enforced.

Knowledge Base:

Distinction Between Fundamental Rights and Directive Principles

Fundamental rights	Directive principles
1) These are negative as they prohibit the State from doing certain things.	These are positive as they require the State to do certain things.

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2) These are justiciable, that is, they are legally enforceable by the courts in case of their violation.	These are non-justiciable, that is, they are not legally enforceable by the courts for their violation.
3) They aim at establishing political democracy in the country.	They aim at establishing social and economic democracy in the country.
4) These have legal sanctions.	These have moral and political sanctions.
5) They promote the welfare of the individual. Hence, they are personal and individualistic.	They promote the welfare of the community. Hence, they are sociitarian and socialistic.
6) They do not require any legislation for their implementation. They are automatically enforced.	They require legislation for their implementation. They are not automatically enforced.
7) The courts are bound to declare a law violative of any of the Fundamental Rights as unconstitutional and invalid.	The courts cannot declare a law violative of any of the Directive Principles as unconstitutional and invalid. However, they can uphold the validity of a law on the ground that it was enacted to give effect to a directive.

Q.39) Consider the following statements with reference to the Directive Principles of State Policy:

1. The Constitution contains the classification of Directive Principles into Socialistic, Gandhian and Liberal-Intellectual.

2. No part of Directive principles can be amended as they are part of basic structure.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) d

Exp) Option d is correct.

Statement 1 is incorrect: The Constitution does not contain any classification of Directive Principles. However, on the basis of their content and direction, they can be classified into three broad categories, viz, socialistic, Gandhian and liberal-intellectual.

1) **Socialistic principles reflect the ideology of socialism.** They lay down the framework of a democratic socialist state, aim at providing social and economic justice, and set the path towards welfare state.

2) **Gandhian principles are based on Gandhian ideology.** They represent the programme of reconstruction enunciated by Gandhi during the national movement. In order to fulfil the dreams of Gandhi, some of his ideas were included as Directive Principles.

3) **Liberal-Intellectual Principles** in this category represent the ideology of liberalism.

Statement 2 is incorrect: The majority of the provisions in the Constitution need to be amended by a special majority of Parliament, that is, a majority of the total membership of each House and a majority of two-thirds of the members of each House present and voting. The provisions which can be amended in this way include:

1) Fundamental Rights and

2) **Directive Principles of State Policy**

Harmony and balance between Fundamental Rights and Directive Principles forms a part of basic structure of the Indian constitution.

Source: indian polity by M laxmikanth. 6th edition pdf. Page no. 246 to 247.

Q.40) Consider the following statements:

1. India is one of the few countries that grow opium legally to extract alkaloids.

2. Poppy cultivation is allowed based on licences issued annually by the Central Bureau of Narcotics.

3. Narcotic Drugs and Psychotropic Substances (NDPS) Act, 1985 allows private players to produce opium in India.

Which of the statements given above is/are correct?

- a) 1 and 2 only
- b) 2 and 3 only
- c) 1 and 3 only
- d) 1, 2 and 3

Ans) a

Exp) Option a is correct.

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Statement 1 is correct.

India is one among 12 countries in the world where legal cultivation of opium is permissible. It is permissible within the ambit of the United Nations, Single Convention on Narcotic Drugs 1961. It currently only extracts alkaloids from opium gum at few facilities. The Revenue Department in the Finance Ministry controls these facilities.

Statement 2 is correct.

Poppy cultivation is allowed based on licences issued annually by the **Central Bureau of Narcotics**.

Uttar Pradesh, Rajasthan, and Madhya Pradesh are the three traditional opium-growing States.

Statement 3 is incorrect.

Narcotic Drugs and Psychotropic Substances (NDPS) Act, 1985 does not allow private player to produce opium in India.

The Union government has decided to bring in the private sector in the production of poppy straw from opium production. The government will need to amend the **Narcotic Drugs and Psychotropic Substances (NDPS) Act, 1985** to bring in the private players in opium production.

Knowledge Base: Alkaloids are a huge group of naturally occurring organic compounds that contain nitrogen atom or atoms (amino or amido in some cases) in their structures. This includes morphine, strychnine, quinine, ephedrine, and nicotine.

Source: Government aims to boost "opium production" -ForumIAS Blog

Q.41) With reference to Indian polity, consider the following statements:

1. The original constitution contained only the fundamental rights and not the fundamental duties.
2. Framers of the constitution incorporated the duties of the State in the Constitution in the form of Directive principles of state policy.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) c

Exp) Option c is correct.

According to Article 51A of the Indian constitution, it shall be the duty of every citizen of India to abide by the fundamental duties.

Statement 1 is correct: The rights and duties of the citizens are correlative and inseparable; the **original constitution contained only the fundamental rights and not the fundamental duties**. In other words, the framers of the Constitution did not feel it necessary to incorporate the fundamental duties of the citizens in the Constitution. The Fundamental Duties in the Indian Constitution are inspired by the Constitution of erstwhile USSR. Notably, none of the Constitutions of major democratic countries like USA, Canada, France, Germany, and Australia and so on specifically contain a list of duties of citizens.

Statement 2 is correct: Framers of the **Indian constitution** incorporated the **duties of the State** in the Constitution **in the form of Directive Principles of State Policy**. Later in 1976, the fundamental duties of citizens were added to the Constitution. In 2002, one more Fundamental Duty was added.

Source: Indian polity by M Laxmikanth. 6th edition pdf. Page no. 268.

Q.42) Consider the following statements with reference to the Mandamus:

1. Mandamus is a command issued by the court to a public official asking him to perform his official duties.
2. The writ of mandamus cannot be issued against a private individual or body.

Which of the statements given above is/are correct?

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) c

Exp) Option c is correct.

Statement 1 is correct: Mandamus literally means 'we command'. **It is a command issued by the court to a public official asking him to perform his official duties** that he has failed or refused to perform. It can also be issued against any public body, a corporation, an inferior court, a tribunal or government for the same purpose.

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Statement 2 is correct: The writ of mandamus cannot be issued

- 1) **Against a private individual or body;**
- 2) To enforce departmental instruction that does not possess statutory force;
- 3) When the duty is discretionary and not mandatory;
- 4) To enforce a contractual obligation;
- 5) Against the president of India or the state governors; and
- 6) Against the chief justice of a high court acting in judicial capacity.

Source: Indian polity by M laxmikanth. 6th edition pdf. Page no. 225.

Q.43) Consider the following statements with reference to the Swaran Singh Committee:

1. The committee recommended the inclusion of a new Schedule Thirteen on fundamental duties in the Constitution.
 2. The committee wanted to make duties justiciable by giving powers to punish for non-compliance of duties by citizens.
 3. Swaran Singh committee had suggested duty to pay taxes should also be a Fundamental Duty of the citizens.
- Which of the statements given above is/are correct?
- a) 1 and 2 only
 - b) 2 and 3 only
 - c) 1 and 3 only
 - d) 1, 2 and 3

Ans) b

Exp) Option b is correct.

In 1976, the Congress Party set up the Sardar Swaran Singh Committee to make recommendations about fundamental duties, the need and necessity of which was felt during the operation of the internal emergency (1975–1977).

Statement 1 is incorrect: In 1976, the Congress Party set up the Sardar Swaran Singh Committee to make recommendations about fundamental duties, the need and necessity of which was felt during the operation of the internal emergency (1975–1977). **The committee recommended the inclusion of a separate chapter on fundamental duties in the Constitution.** The Swaran Singh Committee suggested the incorporation of eight Fundamental Duties in the Constitution; the 42nd Constitutional Amendment Act (1976) included ten Fundamental Duties.

Statement 2 is correct: certain recommendations of the Committee were not accepted by the Congress Party and hence, not incorporated in the Constitution. Committee suggested that **the Parliament** may provide for the **imposition of such penalty or punishment** as may be considered appropriate for **any non-compliance with or refusal to observe any of the duties.**

Statement 3 is correct: Certain recommendations of the **Swaran Singh Committee were not accepted** by the **Congress Party** and hence, **not incorporated in the Constitution.** These include:

- 1) The Parliament may provide for the imposition of such penalty or punishment as may be considered appropriate for any non-compliance with or refusal to observe any of the duties.
- 2) No law imposing such penalty or punishment shall be called in question in any court on the ground of infringement of any of Fundamental Rights or on the ground of repugnancy to any other provision of the Constitution.
- 3) **Duty to pay taxes should also be a Fundamental Duty of the citizens.**

Source: Indian polity by M laxmikanth. 6th edition pdf. Page no. 269.

Q.44) The Ancient and Historical Monument and Archaeological Sites and Remains Act (1951) has been enacted to protect the monuments, places and objects of artistic or historic interest which are declared to be of national importance. The act was implemented to justify which part of constitution?

- a) Part V
- b) Part III
- c) Part XII
- d) Part-IV

Ans) d

Exp) Option d is correct.

According to the **Article-49** of **Directive Principles of State Policy** enumerated in **Part IV** of the constitution deals with the **Protection of monuments** and places and objects of national importance. It shall be the obligation

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of the State to protect every monument or place or object of artistic or historic interests, declared by or under law made by Parliament to be of national importance, from spoliation, disfigurement, destruction, removal, disposal or export, as the case may be. Later to provide it with legislative backing The **Ancient Monuments and Archaeological Sites and Remains Act, 1958** was enacted which envisages the provisions of Article-49.

Source: <https://www.indiaculture.nic.in/sites/default/files/Legislations/6.pdf>

Laxmikant (chapter-DPSP)

Q.45) With reference to 'Contemporary Global Situation', which one of the following statements most appropriately describe the term "One Health" often seen in news?

- It is a unique methodology to promote healthiness of the human body through natural medicines.
- It is a state of complete physical, mental, and social wellbeing and not merely an absence of disease.
- It is an approach that recognizes that the health of humans, animals, and ecosystems are interconnected.
- It is a system that integrates various fields of medicine including Allopathy and Ayurveda to provide effective health results.

Ans) c

Exp) Option c is correct.

One Health is an approach that recognizes that the health of humans, animals, and ecosystems are interconnected. It involves applying a coordinated and multidisciplinary approach at the local, regional, national and global levels. It will address potential or existing risks that originate at the animal-human ecosystems interface.

The approach is important because many times the same microbes infect animals and humans as they share the ecosystems, they live in. Hence, efforts by just one sector cannot prevent or eliminate the infection.

Examples:

- Rabies in humans can be effectively prevented only by targeting the animal source of the virus (for example, by vaccinating dogs).
- Information on influenza viruses circulating in animals is crucial to the selection of viruses for human vaccines for potential influenza pandemics.

Source: ICMR's International Symposium on "One Health" in India-ForumIAS Blog

Q.46) In the question given below, there are two statements marked as Assertion (A) and Reason (R). Mark your answer as per the codes provided below:

Assertion (A): The Constitution does not provide for any legal sanction against the violation of the Fundamental duties.

Reason (R): Parliament is free to enforce them by suitable legislation.

Which of the options given below is/are correct?

- A is true but R is false.
- Both A and R are true and R is the correct explanation of A.
- Both A and R are true but R is not the correct explanation of A.
- Both A and R are false.

Ans) c

Exp) Option c is correct.

Like the Directive Principles, the fundamental duties are also **non-justiciable**. The Constitution does not provide for their direct enforcement by the courts. Moreover, there is **no legal sanction against their violation**. However, Parliament is **free to enforce them by suitable legislation**.

Here both Assertion and Reason are correct but it is nowhere mentioned that due to absence of legal sanctions against violations of fundamental duties parliament can enforce fundamental duties.

Source: M Laxmikant, chapter-Fundamental duties

Q.47) With reference to Martial law, which of the following statements is/are correct?

- The concept of martial law has been borrowed in India from the English common law.
 - It refers to a situation where civil administration is run by the military authorities.
 - Martial law is clearly defined in the Constitution.
 - Declaration of martial law ipso facto result in the suspension of the writ of habeas corpus.
- Select the correct answer using the codes given below:

- 1 and 2 only

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- b) 3 and 4 only
- c) 1 and 3 only
- d) 2 and 4 only

Ans) a

Exp) Option a is correct.

Article 34 provides for the restrictions on fundamental rights while martial law is in force in any area within the territory of India. It empowers the Parliament to indemnify any government servant or any other person for any act done by him in connection with the maintenance or restoration of order in any area where martial law was in force.

Statement 1 is correct and 3 is incorrect. The concept of martial law has been **borrowed in India from the English common law**. However, the expression 'martial law' has not been defined anywhere in the Constitution.

Statement 2 is correct. It refers to a **situation where civil administration is run by the military authorities** according to their own rules and regulations framed outside the ordinary law. It thus implies the suspension of ordinary law and the government by military tribunals. It is different from the military law that is applicable to the armed forces.

Statement 4 is incorrect. The Supreme Court held that the declaration of martial law **does not ipso facto result in the suspension of the writ of habeas corpus**.

Source: M Laxmikanth, chapter- Fundamental Rights

Q.48) In 1999, the Verma Committee was appointed. What was the purpose of the committee?

- a) To examine the political and administrative structure in the district for the purpose of district planning.
- b) To look into the issue of Centre-State relations.
- c) To look into the issues of linguistic and religious minorities in India.
- d) To identify the existence of legal provisions for the implementation of the fundamental duties.

Ans) d

Exp) Option d is correct.

The **Verma Committee** on Fundamental Duties of the Citizens (1999) **identified the existence of legal provisions for the implementation of some of the fundamental duties**.

Option a is incorrect. Thungon Committee: In 1988, a sub-committee of the Consultative Committee of Parliament was constituted under the chairmanship of P.K. Thungon to examine the political and administrative structure in the district for the purpose of district planning.

Option b is incorrect. Sarkaria Commission: was set up in 1983 by the central government to examine the central-state relationship.

Option c is incorrect. Ranganath Misra Commission: National Commission for Religious and Linguistic Minorities, also called as Ranganath Misra Commission was constituted by Government of India in 2004 to look into various issues related to Linguistic and Religious minorities in India.

Knowledge Base: As per Verma Committee, legal provisions that exist for Implementation of Fundamental Duties.

- 1) The Prevention of Insults to National Honour Act (1971) prevents disrespect to the Constitution of India, the National Flag and the National Anthem.
- 2) The various criminal laws in force provide for punishments for encouraging enmity between different sections of people on grounds of language, race, place of birth, religion and so on.
- 3) Protection of Civil Rights Act (1955) provides for punishments for offences related to caste and religion.
- 4) The Indian Penal Code (IPC) declares the imputations and assertions prejudicial to national integration as punishable offences.
- 5) The Unlawful Activities (Prevention) Act of 1967 provides for the declaration of a communal organisation as an unlawful association.
- 6) The Representation of People Act (1951) provides for the disqualification of members of the Parliament or a state legislature for indulging in corrupt practice, that is, soliciting votes on the ground of religion or promoting enmity between different sections of people on grounds of caste, race, language, religion and so on.
- 7) The Wildlife (Protection) Act of 1972 prohibits trade in rare and endangered species.
- 8) The Forest (Conservation) Act of 1980 checks indiscriminate deforestation and diversion of forest land for non-forest purposes.

Source: M Laxmikanth, chapter-Fundamental duties

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Q.49) With reference to inclusion of Fundamental Duties by 42nd Amendment Act, which of the following statements is/are correct?

1. The Opposition in the Parliament opposed the inclusion of fundamental duties in the Constitution.
2. A bill was moved by the Janta Party Government to annul the Fundamental duties.

Select the correct answer using the codes given below:

- a) 1 only
- b) 2 only
- c) Both 1 and 2
- d) Neither 1 nor 2

Ans) a

Exp) Option a is correct.

Statement 1 is correct. Indira Gandhi, the then Prime Minister, justified the inclusion of fundamental duties in the Constitution and argued that their inclusion would help to strengthen democracy. But, the Opposition in the Parliament strongly opposed the inclusion of fundamental duties in the Constitution by the Congress government.

Statement 2 is incorrect. However, the new Janata Government headed by Morarji Desai in the post-emergency period **did not annul the Fundamental Duties and no such bill was moved.** This shows that there was an eventual consensus on the necessity and desirability of including the Fundamental Duties in the Constitution. This is more clear with the addition of one more Fundamental Duty in 2002 by the 86th Amendment Act.

Source: M Laxmikanth, chapter-Fundamental duties

Q.50) Lilavati Awards, an initiative of the All-India Council for Technical Education aims to recognise which of the following categories of institutions?

- a) Institutions to treat women with equality and fairness
- b) Institutions to provide full accessibility to Divyangs
- c) Institutions to achieve highest accreditation for three years
- d) Institutions to have in-house entrepreneurship cells

Ans) a

Exp) Option a is correct.

Lilavati Award is an initiative of the All-India Council for Technical Education (AICTE). It aims to recognise efforts by AICTE-approved institutions to treat women with equality and fairness. The award has got its name after the 12th-century book called "Lilavati". The Mathematician Bhaskara II wrote this book.

The objective is to create awareness about issues like sanitation, hygiene, health, nutrition, literacy, employment, technology, credit, marketing, innovation, skill development, natural resources, and rights among women. The award ensures the participation of women and enables them to hold higher positions in educational institutions. In each sub-category, the top three winners will receive award certificates as well as prize money. The first prize winner will get Rs. 1 lakh, the second winner will get Rs. 75,000 and the third winner will get Rs. 50,000.

Source: Press Information Bureau (pib.gov.in)